AUTHENTICATED
U.S. GOVERNMENT
INFORMATION
GPO

THE NATIONAL ARCHIVES
LITTERA SCRIPTA MANET

FEDERAL REGISTER

OF THE UNITED STATES 1934

VOLUME 17 NUMBER 203

Washington, Thursday, October 16, 1952

TITLE 3—THE PRESIDENT

PROCLAMATION 2992

KOREA—SUSPENSION OF TONNAGE DUTIES

BY THE PRESIDENT OF THE UNITED STATES OF AMERICA

A PROCLAMATION

WHEREAS section 4228 of the Revised Statutes of the United States, as amended by the act of July 24, 1897, c. 13, 30 Stat. 214 (U. S. C., title 46, sec. 141), provides, in part, as follows:

"Upon satisfactory proof being given to the President, by the government of any foreign nation, that no discriminating duties of tonnage or imposts are imposed or levied in the ports of such nation upon vessels wholly belonging to citizens of the United States, or upon the produce, manufactures, or merchandise imported in the same from the United States or from any foreign country, the President may issue his proclamation, declaring that the foreign discriminating duties of tonnage and impost within the United States are suspended and discontinued, so far as respects the vessels of such foreign nation, and the produce, manufactures, or merchandise imported into the United States from such foreign nation, or from any other foreign country; the suspension to take effect from the time of such notification being given to the President, and to continue so long as the reciprocal exemption of vessels, belonging to citizens of the United States, and their cargoes, shall be continued, and no longer * * *";

AND WHEREAS satisfactory proof was received by me from the Government of Korea on October 1, 1952, that no discriminating duties of tonnage or imposts are imposed or levied in the ports of Korea upon vessels wholly belonging to citizens of the United States, or upon the produce, manufactures, or merchandise imported in such vessels, from the United States, or from any foreign country:

NOW, THEREFORE, I, Harry S. Truman, President of the United States of America, by virtue of the authority vested in me by the above-quoted statutory provisions, do hereby declare and proclaim that the foreign discriminating duties of tonnage and imposts within the United States are suspended and discontinued so far as respects the vessels of Korea and the produce, manufactures, or merchandise imported in said vessels into the United States from Korea or from any other foreign country; the suspension to take effect from October 1, 1952, and to continue so long as the reciprocal exemption of vessels belonging to citizens of the United States and their cargoes shall be continued, and no longer.

IN TESTIMONY WHEREOF, I have hereunto set my hand and caused the seal of the United States of America to be affixed.

DONE at the City of Washington this thirteenth day of October, in the year of our Lord nineteen hundred
[SEAL] and fifty-two and of the Independence of the United States of America the one hundred and seventy-seventh.

HARRY S. TRUMAN

By the President:

DAVID BRUCE,
Acting Secretary of State.

[F. R. Doc. 52-11297; Filed, Oct. 15, 1952; 10:54 a. m.]

PROCLAMATION 2993

COPYRIGHT—PRINCIPALITY OF MONACO

BY THE PRESIDENT OF THE UNITED STATES OF AMERICA

A PROCLAMATION

WHEREAS section 9 of title 17 of the United States Code, entitled "Copyrights", as codified and enacted into positive law by the act of Congress approved July 30, 1947, 61 Stat. 652, provides in part that the copyright secured by said title shall extend to the work of an author or proprietor who is a citizen or subject of a foreign state or nation only:

"(a) When an alien author or proprietor shall be domiciled within the United States at the time of the first publication of his work; or

"(b) When the foreign state or nation of which such author or proprietor is a citizen or subject grants, either by treaty, convention, agreement, or law, to citizens of the United States the benefit of copyright on substantially the same basis as to its own citizens, or copyright protection, substantially equal to the protection secured to such foreign author under this title or by treaty; or when such foreign state or nation is a party

(Continued on next page)

CONTENTS

THE PRESIDENT

Proclamations Page

Copyright—Principality of Monaco 9159

Korea—Suspension of tonnage duties 9159

EXECUTIVE AGENCIES

Alien Property, Office of

Notices:

Vesting orders, etc.:

Arstein, Karen, et al 9174

Conzi, Laura, et al 9174

Canal Zone

Rules and regulations:

Operation and navigation of Panama Canal and adjacent waters; load and trim; chocks and bitts 9169

Commerce Department

See National Production Authority.

Economic Stabilization Agency

See Price Stabilization, Office of; Rent Stabilization, Office of.

Defense Mobilization, Office of

Rules and regulations:

Program to minimize prospective full mobilization deficiencies of strategic critical materials (DMO 22) 9161

Federal Communications Commission

Notices:

List of changes, proposed changes, and corrections in assignments of certain broadcast stations:

Canadian 9172

Cuban 9172

Federal Power Commission

Notices:

Hearings, etc.:

City Gas Co. of Phillipsburg, N. J., et al 9173

Colorado Interstate Gas Co. 9173

Johnston, Elmer E. 9174

Montana-Dakota Utilities Co. 9173

Puget Sound Power & Light Co. and Public Utility District No. 1 of Chelan County, Washington 9174

FEDERAL REGISTER

Published daily, except Sundays, Mondays, and days following official Federal holidays, by the Federal Register Division, National Archives and Records Service, General Services Administration, pursuant to the authority contained in the Federal Register Act, approved July 26, 1935 (49 Stat. 500, as amended; 44 U. S. C., ch. 8B), under regulations prescribed by the Administrative Committee of the Federal Register, approved by the President. Distribution is made only by the Superintendent of Documents, Government Printing Office, Washington 25, D. C.

The regulatory material appearing herein is keyed to the Code of Federal Regulations, which is published, under 50 titles, pursuant to section 11 of the Federal Register Act, as amended June 19, 1937.

The FEDERAL REGISTER will be furnished by mail to subscribers, free of postage, for $1.50 per month or $15.00 per year, payable in advance. The charge for individual copies (minimum 15¢) varies in proportion to the size of the issue. Remit check or money order, made payable to the Superintendent of Documents, directly to the Government Printing Office, Washington 25, D. C.

There are no restrictions on the republication of material appearing in the FEDERAL REGISTER.

Now Available

UNITED STATES GOVERNMENT ORGANIZATION MANUAL

1952–53 Edition
(Revised through July 1)

Published by the Federal Register Division, the National Archives and Records Service, General Services Administration

746 pages—$1.00 a copy

Order from Superintendent of Documents, United States Government Printing Office, Washington 25, D. C.

CONTENTS—Continued

Fish and Wildlife Service — Page
Rules and regulations:
Hunting:
Montezuma National Wildlife Refuge, New York — 9169
Red Rock Lakes Migratory Waterfowl Refuge, Montana — 9169

Interior Department
See also Fish and Wildlife Service; Land Management, Bureau of; Reclamation Bureau.
Notices:
Commissioner of Reclamation; delegation of authority with respect to Columbia Basin Project — 9171

Justice Department
See Alien Property, Office of.

CONTENTS—Continued

Land Management, Bureau of — Page
Notices:
Arizona:
Air-navigation site withdrawal — 9170
Order of restoration from Power Project No. 30 — 9170
New Mexico; air-navigation site withdrawal reduced — 9170
Utah; notice of filing of plats of survey — 9171

National Production Authority
Rules and regulations:
Iron and steel scrap; alloy scrap segregation (M–20, Dir. 1) — 9167

Price Stabilization, Office of
Rules and regulations:
Cigarette sellers in New Hampshire; ceiling prices raised to conform with State Unfair Sales Act (GOR 32, SO 7) — 9166
Consumer goods, certain:
Durable:
Clarifying amendments (CPR 161) — 9163
Revocation of suspension of radio, television, and phonograph parts (GOR 5) — 9165
Soft; suspension of imported raw cotton (GOR 4) — 9164
Livestock and meat, fair distribution of; registration of slaughterers; suspension of reporting requirements (DR 1) — 9164
Softwood plywood and veneer, Western, ceiling prices for; miscellaneous amendments (CPR 122) — 9162

Reclamation Bureau
Notices:
Boise Project, Idaho; order of revocation — 9171

Rent Stabilization, Office of
Rules and regulations:
Certain defense rental-areas in Maine and New Hampshire:
Hotels — 9168
Housing — 9168
Motor Courts — 9168
Rooms — 9168

Securities and Exchange Commission
Notices:
Hearings, etc.:
Electric Bond and Share Co. et al — 9174
National Assn. of Securities Dealers, Inc., and George T. Anderson — 9176
Philadelphia Co. and Duquesne Light Co — 9175
Securities Investment Co. of St. Louis — 9174

CODIFICATION GUIDE

A numerical list of the parts of the Code of Federal Regulations affected by documents published in this issue. Proposed rules, as opposed to final actions, are identified as such.

Title 3 — Page
Chapter I (Proclamations):
2992 — 9159
2993 — 9159

CODIFICATION GUIDE—Con.

Title 32A — Page
Chapter I (ODM):
DMO 22 — 9161
Chapter III (OPS):
CPR 122 — 9162
CPR 161 — 9163
DR 1 — 9164
GOR 4 — 9164
GOR 5 — 9165
GOR 32, SO 7 — 9166
Chapter VI (NPA):
M–20, Dir. 1 — 9167
Chapter XXI (ORS):
RR 1 (2 documents) — 9168
RR 2 (2 documents) — 9168
RR 3 — 9168
RR 4 — 9168

Title 35
Chapter I:
Part 4 — 9169

Title 50
Chapter I:
Part 31 — 9169
Part 35 — 9169

to an international agreement which provides for reciprocity in the granting of copyright, by the terms of which agreement the United States may, at its pleasure, become a party thereto.";

and

WHEREAS section 1 of the said title 17 provides in part as follows:

"Any person entitled thereto, upon complying with the provisions of this title, shall have the exclusive right:

* * * * *

"(e) To perform the copyrighted work publicly for profit if it be a musical composition; * * * *Provided*, That the provisions of this title, so far as they secure copyright controlling the parts of instruments serving to reproduce mechanically the musical work, shall include only compositions published and copyrighted after July 1, 1909, and shall not include the works of a foreign author or composer unless the foreign state or nation of which such author or composer is a citizen or subject grants, either by treaty, convention, agreement, or law, to citizens of the United States similar rights.";

and

WHEREAS section 9 of the said title 17 further provides that "The existence of the reciprocal conditions aforesaid shall be determined by the President of the United States, by proclamation made from time to time as the purposes of this title may require * * *"; and

WHEREAS a Sovereign Ordinance has been issued this day by His Serene Highness the Prince of Monaco whereby citizens of the United States as of this day are entitled to obtain copyright protection in the Principality of Monaco for all their artistic and literary works on substantially the same basis as nationals of Monaco, including rights similar to those provided by section 1 (e) of the said title 17:

NOW, THEREFORE, I, HARRY S. TRUMAN, President of the United States of America, do declare and proclaim:

That as of this day the conditions specified in sections 9 (b) and 1 (e) of title 17 of the United States Code exist and

are fulfilled with respect to nationals of the Principality of Monaco, and that nationals of the Principality of Monaco as of this day are entitled to all the benefits of the said title 17 except those conferred by the provisions embodied in the second paragraph of section 9 (b) thereof regarding the extension of time for fulfilling copyright conditions and formalities.

Provided, that the enjoyment by any work of the rights and benefits conferred by the said title 17 shall be conditioned upon compliance with the requirements and formalities prescribed with respect to such works by the copyright laws of the United States:

And provided further, that the provisions of section 1 (e) of the said title 17, so far as they secure copyright controlling parts of instruments serving to reproduce mechanically the musical work, shall apply only to compositions published on or after this day, and registered for copyright in the United States which have not been reproduced within the United States prior to this day on any contrivance by means of which the work may be mechanically performed.

IN WITNESS WHEREOF, I have hereunto set my hand and caused the Seal of the United States of America to be affixed.

DONE at the City of Washington this fifteenth day of October in the [SEAL] year of our Lord nineteen hundred and fifty-two and of the Independence of the United States of America the one hundred and seventy-seventh.

HARRY S. TRUMAN

By the President:

DAVID BRUCE,
Acting Secretary of State.

[F. R. Doc. 52-11315; Filed, Oct. 15, 1952; 12:46 p. m.]

RULES AND REGULATIONS

TITLE 32A—NATIONAL DEFENSE, APPENDIX

Chapter I—Office of Defense Mobilization

[Defense Mobilization Order 22]

DMO 22—PROGRAM TO MINIMIZE PROSPECTIVE FULL MOBILIZATION DEFICIENCIES OF STRATEGIC AND CRITICAL BAND I MATERIALS

Purpose. The purpose of this order is to reaffirm the policy, assign responsibility and specify the further actions necessary to minimize the prospective full mobilization shortages of certain strategic materials specified as Band I.

Definition. Band I materials are those for which the presently prospective supply without remedial steps is currently calculated to be inadequate by substantial margins to meet minimum requirements for full scale mobilization. Periodically, DPA, with the advice of other responsible agencies, will review the Strategic and Critical Materials Stockpile List and, with the approval of ODM, make appropriate changes in the materials included in Band I.

Policy. All responsible agencies will intensify their current activities to (a) expand supply and (b) eliminate unessential requirements for these Band I materials so that, in case of full mobilization, shortages of these strategic materials will not be a limiting factor in meeting the major end-item programs of the Department of Defense.

Program. The following program is designed to reinforce current actions being undertaken to carry out this policy:

1. DPA shall prepare quarterly analyses of the demand-supply position of Band I materials under specific assumptions with respect to 5-year full mobilization requirements, conservation practices and supply expansions. These analyses shall be used by all responsible agencies in developing these programs. They will provide a continuing record of programs realized and projected to permit the Government to know as accurately as possible the magnitude of the risk entailed by prospective shortages. They will also provide a basis and justification for extraordinary measures to be taken to eliminate unessential requirements and expand supply. The responsible agencies shall provide DPA with information in the detail it prescribes to fulfill this responsibility.

The analyses shall be submitted to ODM once a quarter, starting November 1, 1952. DPA shall include with these analyses a statement of the policy issues involved and recommendations with respect to future action for the consideration of the Director of ODM.

2. The Munitions Board and the responsible civilian agencies shall intensify action required to improve techniques for estimating military, war-supporting and essential civilian full mobilization requirements for Band I materials. Estimates of requirements for military "A" products are the responsibility of the Munitions Board. It is essential that to the greatest extent possible full mobilization requirements be based on feasible schedules of end-item production and on realistic end-item bills-of-materials, reflecting feasible prospective conservation practices. To the extent factoring is necessary, it should reflect not projections of historical data, but realistic bills-of-materials. In reviewing requirements for military "A" products, representatives of the DPA Military and Atomic Energy Division of the Office of Program and Requirements shall have access to the bases underlying the Munitions Board's estimated requirements in order to facilitate the preparation of reliable estimates. They shall also assist the Munitions Board in the development of these bases, where appropriate. Estimates of military "B" product requirements are the responsibility of NPA. Estimates of requirements for war-supporting and essential civilian programs are the responsibility of DPA working with the other responsible civilian agencies.

3. All agencies shall intensify conservation efforts. DPA, working with the Munitions Board and the responsible civilian agencies, shall (a) prepare a quarterly list of feasible conservation recommendations, (b) wherever practicable, set quantitative goals for each recommendation, and (c) measure progress being achieved. These conservation practices should be reflected in requirements estimates submitted to DPA.

Both civilian and military agencies shall strengthen their administrative procedure for putting conservation recommendations into effect as rapidly as possible. Re-design and substitution will be necessary in some military end-items to insure the absolute minimum use of scarce materials consistent with desired performance characteristics. Through control measures, maximum practicable conservation of these scarce materials should be achieved in industrial and civilian production. Research must be emphasized leading to development of alternate materials and alloys, which will make materials available with similar performance characteristics for specific uses.

4. DMPA shall intensify expansion activities necessary to increase the supply of Band I materials beyond presently achieved levels. Based on programs authorized by DPA, DMPA should initiate such extraordinary measures as may be required to expand supply. To achieve this objective any of the following measures may be used by DMPA: loans and advances, grants of funds for exploration and technological development, long-term contracts with market guarantees and prices substantially higher than current market prices, bonus payments for accelerated delivery, the underwriting of additional cost on an arbitration basis for early delivery, negotiations with foreign governments and other Government assistance available under existing legislation. In those cases where the Administrator of the Defense Materials Procurement Agency finds it is necessary to make future Government contracts or letters of intent binding in order to accelerate the accomplishment of these programs, such contracts or letters of intent may be made binding even though later information may lead to a reduction of calculated deficiencies.

DMPA shall prepare for DPA quarterly reports, indicating both reasonably assured and potential sources of supply—with data specifying the financial obligation assumed by the Government in each case. These reports should also include specific recommendations for further action, indicating whether existing measures are adequate or whether new measures and authority are required.

DMPA shall also prepare a study, directed in the case of each Band I material, to that price level and market guarantee above and beyond which it is to the Government's interest to build facilities rather than to purchase materials. Review of tax legislation and changes in defense legislation pertaining to the question of construction of facilities versus purchase of materials is also requested of DMPA.

5. The Munitions Board shall give priority to the review of stockpile objectives for Band I materials and, jointly with the Secretary of the Interior, revise them where necessary. Stockpile objectives shall provide a firm basis for commitments to expand supply.

6. The DPA will rely on the Director for Mutual Security to arrange for appropriate steps to: (a) Formulate estimates of friendly countries' supply-demand position for Band I materials under conditions of full mobilization; (b) encourage expansion of production in friendly countries, and (c) stimulate conservation programs in friendly consuming countries.

The Director for Mutual Security also should recommend to the Director of Defense Mobilization such other steps concerning U. S. policies affecting programming, procurement, conservation, and development of materials which would make foreign sources of supply more reliable and contribute to the maximum collective strength of the free world.

7. The coordination and direction of this program shall be the responsibility of DPA. The primary objective of DPA shall be to establish a firm basis for action by all agencies in order to obtain, as soon as possible, the indispensable minimum amount of materials necessary for full mobilization.

This order is to take effect on October 17, 1952.

OFFICE OF DEFENSE MOBILIZATION,
HENRY H. FOWLER,
Director.

OCTOBER 15, 1952.

[F. R. Doc. 52-11299; Filed, Oct. 15, 1952; 11:22 a. m.]

Chapter III—Office of Price Stabilization, Economic Stabilization Agency

[Ceiling Price Regulation 122, Amdt. 1]

CPR 122—CEILING PRICES FOR WESTERN SOFTWOOD PLYWOOD AND VENEER

MISCELLANEOUS AMENDMENTS

Pursuant to the Defense Production Act of 1950, as amended, Executive Order 10161, and Economic Stabilization General Order No. 2, this Amendment 1 to Ceiling Price Regulation 122 is hereby issued.

STATEMENT OF CONSIDERATIONS

This amendment to CPR 122 adds to the regulation ceiling prices and established weights for direct mill sales of most grades and sizes of Plyron, a Douglas Fir plywood faced with hardboard. It also clarifies Section 3 (b) of the regulation which deals with less-than-carload sales.

Plyron is grade marked and inspected by the Douglas Fir Plywood Association and is nationally advertised under that trade name. It has many industrial uses, in addition to being used as siding and concrete forms and in connection with cabinet and built-in fixtures. The production of Plyron on a large scale began at a relatively recent date. Thus, about 10 companies are presently producing it, whereas there were only 3 producers 2 years ago. Most manufacturers who are presently manufacturing only a few items are planning the manufacture of a fuller and more diversified line. Other mills which are not producing this product at the present time are planning to start its manufacture in the near future. The purpose of this amendment is to give all manufacturers a uniform ceiling price on most grades and sizes of Plyron.

The level of prices established by this amendment for Plyron is approximately at the level prevailing in the base period of the GCPR. The average GCPR level was generally used in establishing ceiling prices for other commodities covered by CPR 122.

The changes in section 3 (b) of CPR 122 make it clear that the addition for less than carload direct mill sales of any product covered by this regulation is permitted only when a less-than-carload freight rate applies from the manufacturer's point of origin of shipment. Such was the original intent of the provision, which was placed in the regulation to provide an additional reimbursement to the producing mill to cover increased expenses involved in handling less-than-carload shipments. An interpretation to this effect was previously issued by the Office of Price Stabilization.

The character of this amendment made it impracticable to consult formally with industry representatives, although, wherever feasible, various representatives from industry were informally consulted and consideration was given to their recommendations.

In the judgment of the Director of Price Stabilization the provisions of this amendment are generally fair and equitable and are necessary to effectuate the purposes of Title IV of the Defense Production Act of 1950, as amended.

AMENDATORY PROVISIONS

Ceiling Price Regulation 122 is hereby amended in the following respects:

1. A new paragraph (g) is added to section 16 immediately following paragraph (f) to read as follows:

(g) *Plyron.* The ceiling prices f. o. b. mill for carload direct mill sales per 1,000 square feet of Plyron, a plywood with inner plies of Douglas Fir veneer manufactured in accordance with the standards of the United States Department of Commerce, National Bureau of Standards, published in Commercial Standard CS 45-48 (Douglas Fir Plywood, domestic grades) Eighth Edition, effective November 1, 1948, and faced with 1/10" or 1/8" hardboard (tempered or treated) shall be as follows:

TABLE 10—PLYRON

[Widths 24" to 48" in 6" breaks; lengths 48", 60", 72", 84", 96"]

Thickness	Number of plies	Interior	Exterior
5/16 inch	3	----------	$190
3/8 inch	3	----------	210
1/2 inch	5	$235	257
5/8 inch	5	267	275
3/4 inch	5	286	305
7/8 inch	7	321	357
1 inch	7	364	374
1 1/8 inches	7	377	405
1 1/4 inches	9	419	444

2. Section 18 is amended to read as follows:

SEC. 18. *Established weights of plywood.* Established weights no higher than the following may be used in figuring delivery charges of plywood:

[Pounds per 1,000 square feet]

Thickness	Douglas fir, hemlock, noble fir, white fir, spruce	Western pine	Redwood cedar	Plyron
1/4-inch	490	----------	----------	----------
5/32-inch	----------	450	----------	----------
5/16-inch	640	525	----------	----------
1/4-inch	790	700	600	----------
5/16-inch	950	875	----------	----------
3/8-inch	1,125	1,050	850	----------
7/16-inch	1,300	1,225	----------	----------
1/2-inch	1,525	1,400	1,175	2,125
9/16-inch	1,675	1,575	----------	----------
5/8-inch	1,825	1,750	1,425	2,425
11/16-inch	2,000	1,925	----------	----------
3/4-inch	2,225	2,100	1,900	2,825
13/16-inch	2,375	2,275	----------	----------
7/8-inch	2,600	2,450	----------	3,200
15/16-inch	2,800	2,625	----------	----------
1 inch	3,000	2,800	----------	3,600
1 1/16-inches	3,175	2,975	----------	----------
1 1/8-inches	3,350	3,150	----------	3,950
1 3/16-inches	3,640	3,325	----------	----------
1 1/4-inches	3,790	3,500	----------	4,440

For thicknesses greater than 1 1/4" use 1" weight plus weight of other thicknesses necessary.

NOTE: The seller must apply to the Lumber & Wood Products Branch, Office of Price Stabilization, Washington 25, D. C., for established weights for other softwood species and other products covered by this regulation not shown in above tables.

3. Section 3 (b) of CPR 122 is amended to read as follows:

(b) *Ceiling prices f. o. b. mill for less-than-carload direct mill sales.* When a less-than-carload freight rate applies at the manufacturer's point of origin of shipment, the ceiling price f. o. b. mill for less-than-carload direct mill sales of any product covered by this regulation shall be 10 percent over the prices set forth in the ceiling price tables of this regulation. You may not make a charge under this paragraph if you charge under section 17 (l) for carload shipments mixed with lumber.

(Sec. 704, 64 Stat. 816, as amended; 50 U. S. C. App. Sup. 2154)

Effective date. This amendment is effective October 20, 1952.

JOSEPH H. FREEHILL,
Acting Director of Price Stabilization.

OCTOBER 15, 1952.

[F. R. Doc. 52-11309; Filed, Oct. 15, 1952; 4:00 p. m.]

[Ceiling Price Regulation 161, Amdt. 1]

CPR 161—Consumer Durable Goods Regulation

CLARIFYING AMENDMENTS

Pursuant to the Defense Production Act of 1950, as amended, Executive Order 10161, and Economic Stabilization Agency General Order No. 2, this amendment to Ceiling Price Regulation 161 is hereby issued.

STATEMENT OF CONSIDERATIONS

This amendment to Ceiling Price Regulation 161 adds to, clarifies and corrects the list of commodities contained in Appendix A, and makes technical changes in the text of the regulation.

Certain commodities were inadvertently included within the coverage of this regulation although they were not within the classification of consumer goods subject to Ceiling Price Regulations 22 and 161 and are covered by other regulations. These items—lighting fixture glassware (blown and pressed only), butcher saws, auto radio antennas, electronic signaling systems and parts, and motor scooters—are by this amendment removed from Appendix A and the coverage of CPR 161.

Thermostats for use on gas and electric cooking ranges are subject to CPR 22, but special considerations have dictated their exclusion from CPR 161, and they are, consequently, removed from Appendix A by this amendment.

Jewelled watches, wholly manufactured in the United States, are added to Appendix A because they are consumer durable goods presently subject to Ceiling Price Regulation 22 or the General Ceiling Price Regulation, and, consequently, are in the same classification as other commodities listed in Appendix A to CPR 161 and should be covered by that regulation for the same reasons. Clock type watches are presently listed in Appendix A. Watches and clocks made in the United States with imported movements remain subject to Ceiling Price Regulation 145.

Hot plates, portable ovens, and domestic space heaters are also consumer durable goods presently subject to CPR 22 or the General Ceiling Price Regulation and were intended to be covered by Ceiling Price Regulation 161. For this reason, this amendment adds them to Appendix A. In addition, the present listings of freezers and refrigerators are amended to make clear that the larger commercial and industrial types are not covered by Ceiling Price Regulation 161.

The listing of motion picture cameras, etc., is altered to exclude cameras and other photographic apparatus taking film of 35 mm. or larger. This is necessary to avoid conflict with CPR 30, which provides for cameras using the larger film and for studio, theatre, commercial and industrial cameras and other photographic apparatus.

A typographical error appeared in subparagraph 3 of Appendix A. Since signs are now exempted from price controls, this subparagraph is being deleted instead of corrected. Another typographical error in paragraph 9 relating to asphalt tile is being corrected.

Section 6 (d) of CPR 161 relates to ceiling prices for sales to a new class of purchaser. This provision was intended to apply to all commodities listed in Appendix A and not only to "new" commodities. The first unnumbered paragraph of section 1 and the heading of section 6 are amended to make this intention clear.

Subsequent to the issuance of CPR 161 certain small manufacturers have been exempted from CPR 22 and the GCPR. This amendment extends that exemption to CPR 161 for the same reasons as are set forth in the Statement of Considerations for Amendment 33 to the GCPR.

In view of the technical nature of the changes and clarifications made by this amendment, and the desirability of immediate correction, the Director of Price Stabilization has found that special circumstances have rendered consultation with industry representatives, including trade association representatives, impracticable.

AMENDATORY PROVISIONS

Ceiling Price Regulation 161 is hereby amended in the following respects:

1. Section 1 is amended by inserting the following sentence at the end of the third sentence of the first unnumbered paragraph after the words "General Ceiling Price Regulation":

Similarly, this regulation applies to, and replaces CPR 22 and the GCPR as to the determination of ceiling prices for, sales of all commodities listed in Appendix A to a new class of purchaser.

2. Section 1 is amended by adding the following paragraph at the end of the section:

This regulation does not cover manufacturers who are exempt from price control by virtue of section 14 (n) of the General Ceiling Price Regulation or Appendix A (a) (4) of Ceiling Price Regulation 22.

3. Section 6 is amended by deleting the period and adding the following words at the end of its heading, "and for sales to a new class of purchaser" so that it reads as follows:

SEC. 6. *Ceiling prices for new commodities not covered by the preceding sections and for sales to a new class of purchaser.*

4. Paragraph 1 of Appendix A is amended in the following respects:

(i) Add the words "farm and home" after the word "Freezers" so that the subparagraph reads as follows:

Freezers, farm and home.

(ii) After the subparagraph "Freezers, farm and home" add a new subparagraph to read as follows:

Hot plates.

(iii) After the subparagraph "Laundry washers and driers" add a new subparagraph to read as follows:

Portable ovens.

(iv) Add the word "domestic" after the word "Refrigerators" so that the subparagraph reads as follows:

Refrigerators, domestic.

(v) After the subparagraph "Sewing machines and attachments" add a new subparagraph to read as follows:

Space heaters, domestic.

5. Paragraph 3 of Appendix A is amended by deleting the subparagraph:

Signs (except car, lithographed and printed).

6. Paragraph 5 of Appendix A is amended in the following respects:

(i) Insert the words "and watches and clocks made with imported movements" in the heading so that it reads as follows:

Clocks and watches (except time clocks and industrial timing devices and watches and clocks made with imported movements)

(ii) Insert the following subparagraph after "Timers, clock":

Watches, jewelled, wholly manufactured in the United States.

7. Paragraph 9 of Appendix A is amended by correcting the first subparagraph to read as follows:

Asphalt tile.

8. Paragraph 12 of Appendix A is amended by deleting the subparagraph:

Lighting fixture glassware (blown and pressed only).

9. Paragraph 14 of Appendix A is amended by deleting the following subparagraphs:

Butcher saws.
Thermostats for use on gas and electric cooking ranges.

10. Paragraph 27 of Appendix A is amended by adding to the last subparagraph the phrase "less than 35 mm." immediately following the word "apparatus," and the word "not" immediately preceding the phrase "for studio" so that it reads as follows:

Motion picture cameras, projectors and apparatus, less than 35 mm., including sound equipment and parts for recording, reproducing and projecting (not for studio, theatre, commercial, and industrial use).

11. Paragraph 33 of Appendix A is amended in the following respects:

(i) Delete from the first subparagraph the words "automobile radio" so that it reads as follows:

Antennas, household radio and television.

(ii) Delete the following subparagraph:

Signaling systems and parts, electronic (not covered by CPR 30).

12. Paragraph 40 of Appendix A is amended by deleting the words "motor scooter" from the sixth subparagraph so that it reads as follows:

Motor bicycles and power cycles.

(Sec. 704, 64 Stat. 816, as amended; 50 U. S. C. App. Sup. 2154)

Effective date. This amendment is effective October 15, 1952.

JOSEPH H. FREEHILL,
Acting Director of Price Stabilization.

OCTOBER 15, 1952.

[F. R. Doc. 52-11306; Filed, Oct. 15, 1952; 11:45 a. m.]

[Distribution Regulation 1, Revision 1, Amdt. 4]

DR 1—Fair Distribution of Livestock and Meat

Registration of Slaughterers; Suspension of Reporting Requirements

Pursuant to the Defense Production Act of 1950, as amended, Executive Order 10161, Delegation of Authority by the Secretary of Agriculture with respect to meat, as amended, and Economic Stabilization Agency General Order 5, Revision, this Amendment 4 to Distribution Regulation 1, Revision 1, is hereby issued.

Statement of Considerations

This amendment makes the following changes in Distribution Regulation 1, Revision 1 (DR 1, Rev. 1):

(1) This amendment permits the registration of slaughterers who slaughtered during the base period (January 1, 1950, to February 9, 1951) but who failed to register by the cut-off date of December 15, 1951. It has been found that a few slaughterers who slaughtered during the base period failed to register in time. The cut-off date has been eliminated in order to prevent hardship to such persons and because it has been determined that this action will not contravene the policies of this regulation.

(2) In accordance with the general policy of OPS of relieving industry of the burden of reporting requirements whenever practicable, this amendment also suspends the reporting requirements of DR 1, Rev. 1, concerning the volume of slaughter. These reports were useful in enforcing slaughter quotas when quotas were in effect and in enforcing restrictions on the species of livestock which could be slaughtered when such restrictions were in existence. In addition, they are necessary in connection with any allocations of meat. Congress, however, has eliminated slaughter quotas and the authority of OPS to place restrictions on the species of livestock which may be slaughtered by registered slaughterers. Moreover, there are no allocations of meat in effect at the present time. Accordingly, these reporting requirements are not now essential to the effective administration of this regulation.

In the formulation of this amendment, special circumstances have rendered consultation with industry representatives, including trade association representatives, impracticable.

In the judgment of the Director the provisions of this amendment are generally fair and equitable, are necessary to effectuate the purposes of Title I of the Defense Production Act of 1950, as amended, are appropriate to promote the national defense, and conform with all applicable standards of that Act.

Amendatory Provisions

Distribution Regulation 1, Revision 1, is amended in the following respects:

1. Section 15 is amended by redesignating section 15 (c) as section 15 (d) and inserting before it a new section 15 (c) to read as follows:

(c) If you slaughtered livestock during the period January 1, 1950, to February 9, 1951, and you are not now registered as a slaughterer, you may apply to the OPS for a Class 1 or Class 2 registration. The Director of Price Stabilization may grant you a registration, on such conditions as he may deem necessary to further the policy of this regulation, if you submit a signed application showing the following information:

(1) Your name and address. (If you are a corporation, state the name and address of each person owning stock amounting to 10 percent or more of the total issued. If you are a partnership, state the name and address of each person with an interest of 10 percent or more in the partnership.) Submit the same information regarding the name and address of the slaughtering establishment in which you operated in the period January 1, 1950, to February 9, 1951;

(2) Documentary evidence establishing that you slaughtered during the period January 1, 1950, to February 9, 1951, and indicating whether you slaughtered for your own account or for others during that period;

(3) A description of the sanitary facilities with which your plant is equipped. To be registered, your establishment must meet the sanitary requirements of section 15 (a).

2. Section 17 (b) is amended by adding a new subparagraph (5) to read as follows:

(5) This paragraph 17 (b) is suspended until further notice, commencing with slaughterers' accounting periods beginning after September 27, 1952.

(Sec. 704, 64 Stat. 816, as amended; 50 U. S. C. App. Sup. 2154)

Effective date. The provisions of this amendment shall be effective on October 20, 1952.

Note: All reporting requirements of this amendment have been approved by the Bureau of the Budget in accordance with the Federal Reports Act of 1942.

Joseph H. Freehill,
Acting Director of Price Stabilization.

October 15, 1952.

[F. R. Doc. 52-11308; Filed, Oct. 15, 1952; 4:00 p. m.]

[General Overriding Regulation 4, Revision 1, Amdt. 9]

GOR 4—Exemptions and Suspensions of Certain Consumer Soft Goods

Suspension of Imported Raw Cotton

Pursuant to the Defense Production Act of 1950, as amended, Executive Order 10161, and Economic Stabilization Agency General Order No. 2, this Amendment to General Overriding Regulation 4, Revision 1, is hereby issued.

Statement of Considerations

This amendment adds imported raw cotton to the list of commodities suspended from price controls by section 3 of General Overriding Regulation 4, Revision 1.

This action is being taken in line with the policy of suspending or otherwise relaxing price controls on commodities whose selling prices are substantially below ceilings and are not expected to reach ceiling prices in the foreseeable future. Imported raw cotton, insofar as it is subject to price control, is presently covered by CPR 31, as amended. Such regulation provides that ceiling prices for the sale of any commodity by an importer other than an importing-retailer shall be the landed cost of the commodity plus a dollars and cents markup based on sales of such commodity during the base period (July 1, 1949 to June 30, 1950, inclusive). Consequently, under this margin type of regulation, as the landed cost of imported raw cotton decreases the importer's ceiling price likewise decreases.

Current selling prices of imported raw cotton are substantially below the ceiling levels reached under CPR 31 during 1951. Further, it is unlikely that present selling or ceiling prices of imported raw cotton will in the foreseeable future reach the levels of ceiling prices for this cotton which obtained during 1951 or that importers of raw cotton will be able to increase their margins upon suspension of CPR 31. Prices of raw cotton in countries which export to the United States, such as Egypt, India, Peru and Mexico, have followed the decline in selling prices of raw American upland cotton which has taken place in this country during the past year. Further, the cotton covered by this regulation amounts only to an insignificant part of total United States consumption of cotton.

During the past crop year (August–July) consumption of cotton in the United States declined from the large total of the previous year, coincident with the production of a fairly large crop in this country. As a result, domestic prices of American upland cotton receded from the ceiling level of 45.76 cents per pound for odd lots of white middling 15/16 inch in the Group B mill area of the Carolinas. In line with this decline in domestic prices and the larger domestic cotton crop, importers have bought foreign cottons sparingly, and imports of foreign growths during the first eight months of the current crop year were only 66,814 bales compared with imports of 137,195 bales for the same period of the previous crop year. In addition, consumption of cotton in foreign countries is declining and world carryover of cotton on August 1, 1952 is expected to be more than 2,000,000 bales larger than the 11,000,000 bale carryover for the same date in 1951. With these considerations it is unlikely that, for the foreseeable future, the selling or ceiling prices of imported cotton in this country will reach the 1951 peak. With this prospect there seems little reason to expect any widening of importers' margins unless United States demand for foreign cottons strongly increase and prices of foreign growths rise abruptly.

Ceiling prices for raw American upland cotton were established by CPR 8, effective March 3, 1951. While selling prices for such cotton remained at ceil-

ings from March through June 1951, they subsequently declined and have remained below ceilings. Accordingly, on May 20, 1952, price controls on sales of raw American upland cotton were suspended.

The suspension of ceiling prices on imported raw cotton will have little, if any, effect on imports of cotton of foreign growths for the following reasons: Extra long staple cotton is exempt from price regulation by section 14 (s) (5) of the GCPR and imports of other foreign growths of cotton, such as short staple harsh Indian, long staple Peruvian, medium staple Mexican and all other growths of Egyptian except extra long staple, are limited to established quotas which have been in effect for many years. Although it is foreseeable that raw cotton imports may increase over current amounts in successive years because import quotas are larger than actual imports this year, nevertheless, these minor increases would not be the result of suspension of price ceilings, nor is it now foreseeable that such increases would raise prices above the level of ceiling prices reached in 1951.

Should domestic and foreign growths advance in price, then the control of importers' markups will again be necessary. Accordingly, the suspension of this regulation, as it relates to ceiling prices of imported cotton, will be terminated whenever the suspension of ceiling prices for domestic cotton is discontinued or, at the discretion of the Director of Price Stabilization, whenever there may be abnormal increases in prices of any or all varieties of imported cottons.

In the judgment of the Director, price controls on the commodities covered by this amendment are not required at this time in order to carry out the purposes of the Defense Production Act of 1950, as amended. However, all records which were required to be prepared and preserved under applicable ceiling price regulations in effect prior to this suspension must continue to be preserved. In the formulation of this amendment there has been consultation with industry representatives, including trade association representatives, to the extent practicable, and consideration has been given to their recommendations.

AMENDATORY PROVISIONS

Section 3 of General Overriding Regulation 4, Revision 1, is amended by adding the following paragraph:

(m) Imported raw cotton, until such time as the suspension of ceiling price regulations applicable to American upland cotton is discontinued.

(Sec. 704, 64 Stat. 816, as amended; 50 U. S. C. App. Sup. 2154)

Effective date. This Amendment 9 to General Overriding Regulation 4, Revision 1, is effective October 15, 1952.

TIGHE E. WOODS,
Director of Price Stabilization.

OCTOBER 15, 1952.

[F. R. Doc. 52-11307; Filed, Oct. 15, 1952; 11:45 a. m.]

[General Overriding Regulation 5, Revision 1, Amdt. 7]

GOR 5—EXEMPTIONS AND SUSPENSIONS OF CERTAIN CONSUMER DURABLE GOODS AND RELATED COMMODITIES

REVOCATION OF SUSPENSION OF RADIO, TELEVISION AND PHONOGRAPH PARTS

Pursuant to the Defense Production Act of 1950, as amended, Executive Order 10161, and Economic Stabilization Agency General Order No. 2, this amendment 7 to General Overriding Regulation 5, Revision 1, is hereby issued.

STATEMENT OF CONSIDERATIONS

By Amendment 1 to General Overriding Regulation 5, Revision 1, price controls were suspended over radios, television sets and phonographs at all levels of distribution. This action was taken because selling prices for these commodities were materially below ceiling prices. At the same time, parts for these commodities were also suspended. The justification for this action was that prices for these parts can normally be expected to parallel prices for the finished commodities.

However, it has developed, since the issuance of Amendment 1 to GOR 5, Rev. 1, that the suspension of controls over radio, television and phonograph parts is threatening to impair the effectiveness of price controls in other areas where selling prices are at, or close to, ceiling prices. Consequently, it has been decided in the interest of the stabilization program to end the suspension of controls over parts at all levels of distribution.

Of the areas affected by the suspension of control over parts, the one of greatest importance to the consuming public is the repair of radio and television sets. It is common knowledge that there is a serious shortage throughout the country of service men for radios and television sets. Of major importance to every owner of a television set is the cost of servicing it. Prices charged for repairing radio and television sets generally are at ceiling. Since the repair of these sets usually involves the replacement of one or more parts, it is clear that there can be no effective control over the charges made for repairing a set as long as there is no control over the part which is included in the repair. In order to protect consumers utilizing the services of radio and television repair men it is essential that parts be kept under control.

In the short time that controls have been suspended it has become apparent that there is much uncertainty in the industry as to exactly what commodities are included in the suspension. With a few exceptions, such as tubes, the major portion of radio and television parts are not manufactured by radio and television manufacturers, but are produced by "parts" manufacturers for use in a variety of other commodities as well as in radios, television sets, and phonographs. Numerous parts having such interchangeable uses, though they might properly be said to be radio, television or phonograph parts, were, nevertheless, not intended to be suspended from controls. Furthermore, radio, television and phonograph part manufacturers manufacture items which cannot properly be designated as parts, but are merely materials for use in a part or in the finished product. There are indications that the uncertainties as to the exact coverage of the suspension, together with the burdens placed on both sellers and this Agency in drawing the line and maintaining the distinction between items under control and items suspended, may interfere with a workable and enforceable stabilization program in areas where prices are at, or near, ceilings.

With regard to many of the parts which may be used interchangeably in other finished products, it is not possible to ascertain whether and to what extent prices for such parts follow those of the completed radio, phonograph or television set. In addition to these interchangeable parts there are many parts manufactured by the same manufacturers as those who make radio, phonograph and television parts which are similar to the latter but which are used in finished products which are not suspended from price control. In view of the possible pressure which suspension of controls on television, radio and phonograph parts may exert on the ceiling prices of the wide number of commodities using the same or similar parts as go into radio and television sets, it is deemed desirable to bring back under control all parts, except cabinets. The suspension of cabinets is continued.

The effect of this amendment is to reimpose the same ceiling prices and regulations which would have been applicable if no suspension had taken place. However, sellers who have introduced new parts since the suspension are permitted to sell such parts for 30 days at the prices they had in effect during the suspension period. This will allow time for the calculation of ceiling prices and the filing of any reports required under the applicable regulation. In view of the short period of time which has elapsed since the suspension of controls, it is not expected that recontrol upon this basis will present any difficulties for the industry.

In view of the emergency nature of this amendment and the necessity of acting speedily to reimpose controls with as little disturbance to the industry as possible, formal consultation with industry representatives, including trade association representatives, has been rendered impracticable. There has, however, been informal consultation with individual members of the industry.

In the judgment of the Director, based upon data presently available, this action is necessary in the interests of the stabilization program and the ceiling prices reimposed meet the requirements and will effectuate the purposes of Title IV of the Defense Production Act of 1950, as amended.

AMENDATORY PROVISIONS

General Overriding Regulation 5, Revision 1, is hereby amended in the following respects:

1. Section 1 is amended by adding the following sentence at the end thereof:

"The sections in Article IV contain special provisions covering the revocation of certain exemptions and suspensions."

2. Section 102 is amended by deleting from the third line the words "Parts of the foregoing, including" and by deleting from the fourth line the words "and parts thereof" so that the section will read as follows:

SEC. 102. *Radios.*

Radio receivers.
Radio-phonograph combinations.
Radio cabinets.

3. Section 103 is amended by deleting the words "and television accessories" from the section heading, by deleting the words "Television antennae, boosters, accessories" from the fourth line and by deleting from the fifth and sixth lines the words "Parts of the foregoing, including" and the words "and parts thereof" so that the section will read as follows:

SEC. 103. *Television sets.*

Television receivers.
Television combinations, including combinations with radio or phonograph or both.
Television cabinets.

4. Section 104 is amended by deleting from the sixth line the words "Parts of the foregoing" and by substituting the words "Phonograph cabinets." As amended, the section will read as follows:

SEC. 104. *Phonographs, recorders, and related commodities.*

Record player attachments.
Phonographs.
Magnetic recorders, tape or wire (not including office equipment).
Tape and wire for magnetic recording.
Phonograph cabinets.

5. There is added a new Article IV to read as follows:

ARTICLE IV—REVOCATION

SEC. 200. *Radio, television and phonograph parts.* On and after October 15, 1952, regardless of any contract or other obligation, you shall not sell, and you shall not buy in the regular course of business or trade, any radio, television or phonograph part, except a cabinet, at a price exceeding its ceiling price under the regulation applicable to such part. Notwithstanding the foregoing provision, however, if the part is one which you first sold or offered for sale after August 28, 1952, you may sell it until November 15, 1952, at a price not to exceed the highest price at which you delivered it between August 29, 1952 and October 15, 1952 or, if the part was not delivered during this period, the highest price at which you offered it for delivery during this period to a purchaser of the same class. All terms used in this section have the same meaning as in the regulation which establishes your ceiling prices for radio, television and phonograph parts.

(Sec. 704, 64 Stat. 816, as amended; 50 U. S. C. App. Sup. 2154)

Effective date. This amendment is effective on October 15, 1952.

JOSEPH H. FREEHILL,
Acting Director of Price Stabilization.

OCTOBER 15, 1952.

[F. R. Doc. 52-11305; Filed, Oct. 15, 1952; 11:44 a. m.]

[General Overriding Regulation 32, Special Order 7]

GOR 32—ADJUSTMENT OF CEILING PRICES FOR MATERIALS TO THE MINIMUM PRICES FIXED BY STATE LAWS

SO 7—SELLERS OF CIGARETTES IN NEW HAMPSHIRE

CEILING PRICES RAISED TO CONFORM WITH THE NEW HAMPSHIRE UNFAIR SALES ACT

Statement of considerations. This special order raises the ceiling prices of New Hampshire cigarette sellers above those previously established under regulations of the Office of Price Stabilization (OPS) where necessary to conform to the minimum prices required to be charged by the New Hampshire Unfair Sales Act. This action does not presently affect ceiling prices of New Hampshire cigarette sellers which are at or above the minimum prices required by that act on the effective date of the special order. Provision is also made for the adjustment of ceiling prices of cigarette sellers subject to the New Hampshire Unfair Sales Act in the event of a change in the minimum prices computed pursuant to that act and in some instances for the establishment of ceiling prices for new brands of cigarettes sold in New Hampshire.

This special order is issued pursuant to section 5 of General Overriding Regulation (GOR) 32. That regulation was issued by the OPS to conform to the requirements of section 402 (1) of the Defense Production Act of 1950, as amended. GOR 32 sets forth certain facts which must be shown to exist in a particular State before the OPS is required by the above-noted statutory provision to raise ceiling prices to the minimum prices required by the law of that State.

It appears from the information contained in the application of the Director of the Tobacco Products Division of the New Hampshire State Tax Commission that the New Hampshire Unfair Sales Act was in effect and enforced on June 30, 1952, and on August 18, 1952 (the date of the application); that the act has not been held invalid by any court of competent jurisdiction; and that the ceiling prices of some cigarette sellers in the State of New Hampshire are lower than the minimum sales prices required to be charged by that act.

Special provisions. For the reasons set forth in the Statement of Considerations and pursuant to section 5 of GOR 32 this special order is hereby issued.

1. Ceiling prices of cigarette sellers subject to the New Hampshire Unfair Sales Act of 1952, hereinafter referred to as the New Hampshire Act, which are below the minimum sales prices computed pursuant to that act, as specified in paragraph 5 hereof, are hereby raised to those minimum sales prices.

2. If the minimum prices for brands of cigarettes sold in New Hampshire on August 18, 1952 (the date of the application submitted by the Director of the Tobacco Products Division of the New Hampshire State Tax Commission, hereinafter referred to as the State Director, under GOR 32), have increased after that date pursuant to the New Hampshire Act, such higher minimum prices shall become ceiling prices as hereinafter specified in this paragraph, upon the sending of a report by the State Director by registered mail to the Grocery Products Branch, Office of Price Stabilization, Washington 25, D. C. That report will indicate the reason for the change as well as the computations by which the new required minimum prices have been determined and will list the new prices for various brands of cigarettes. The higher minimum prices so reported shall be established as ceiling prices for the sellers affected by paragraph 1 hereof and any other seller subject to the New Hampshire Act whose ceiling prices would, as a result of such change, be below the new required minimum prices. If the minimum prices for brands of cigarettes sold in New Hampshire on August 18, 1952, are decreased after that date pursuant to the New Hampshire Act, ceiling prices of the sellers affected by paragraph 1 hereof shall be established at the new required minimum prices. However, where such lower minimum prices are below the ceiling prices in effect immediately prior to the date of this special order, these ceiling prices shall be in effect after such change in the minimum prices.

3. If new brands of cigarettes are sold in New Hampshire after August 18, 1952, the cigarette sellers subject to the New Hampshire Act who are unable to compute ceiling prices for the new brands pursuant to section 5 of the General Ceiling Price Regulation (because their comparison brands are not priced under section 3 of the General Ceiling Price Regulation but are priced under paragraph 1 or 2 of this special order) shall take as their ceiling prices for such new brands the minimum sales prices computed for them in accordance with the New Hampshire Act. These prices will be established as ceiling prices for such cigarette sellers upon the sending of a report by the State Director by registered mail to the Grocery Products Branch, Office of Price Stabilization, Washington 25, D. C. This report will set forth the brand names of the cigarettes and the minimum sales prices required to be charged for them in accordance with the New Hampshire Act and will indicate how these minimum prices were computed.

4. Nothing in this special order shall prevent a cigarette seller subject to the New Hampshire Act whose ceiling prices would be affected by the State Director's filing the report set forth in paragraph 2 or 3 hereof, from filing such report in his own behalf. The individual seller may use as his ceiling prices the minimum prices required by the New Hampshire Act upon his mailing of such report

unless and until such seller is notified by the OPS that the reported prices are disapproved or that further information is required. In the event of a request for further information, the reported minimum prices shall not be used as ceiling prices until such further information is sent by registered mail to the Grocery Products Branch, Office of Price Stabilization, Washington 25, D. C.

5. As used in this special order, the term "New Hampshire Unfair Sales Act" means that Act as amended up to June 30, 1952 (Chapter 204, Revised Laws of New Hampshire 1942).

6. This special order or any provision hereof may be revoked, suspended, or amended by the Director of Price Stabilization.

(Sec. 704, 64 Stat. 816, as amended; 50 U. S. C. App. Sup. 2154)

Effective date. This special order is effective October 16, 1952.

NOTE: The record-keeping and reporting requirements of this special order have been approved by the Bureau of the Budget in accordance with the Federal Reports Act of 1942.

JOSEPH H. FREEHILL,
Acting Director of Price Stabilization.

OCTOBER 15, 1952.

[F. R. Doc. 52-11310; Filed, Oct. 15, 1952; 4:00 p. m.]

Chapter VI—National Production Authority, Department of Commerce

[NPA Order M-20, Direction 1, as amended Oct. 15, 1952]

M-20—IRON AND STEEL SCRAP

DIR. 1—ALLOY SCRAP SEGREGATION

This amended direction to NPA Order M-20 is found necessary and appropriate to promote the national defense and is issued pursuant to the Defense Production Act of 1950, as amended. In the formulation of this amended direction, there has been consultation with industry representatives, including trade association representatives, and consideration has been given to their recommendations. However, consultation with representatives of all trades and industries affected in advance of the issuance of this amended direction has been rendered impracticable due to the necessity for immediate action and because the order affects a large number of different trades and industries.

EXPLANATORY

Direction 1 of August 14, 1952, to NPA Order M-20 is amended by changing the definition of "person" appearing in section 1 (a), and by deleting two specification numbers from List A of the order.

REGULATORY PROVISIONS

Sec.
1. Definitions.
2. Segregation required.
3. Sale and delivery.
4. Mingling prohibited.
5. Use limitation.
6. Exceptions.
7. Reports.

AUTHORITY: Sections 1 to 7 issued under sec. 704, 64 Stat. 816, Pub. Law 429, 82d Cong.; 50 U. S. C. App. Sup. 2154. Interpret or apply sec. 101, 64 Stat. 799, Pub. Law 429, 82d Cong.; 50 U. S. C. App. Sup. 2071; sec. 101, E. O. 10161, Sept. 9, 1950, 15 F. R. 6105; 3 CFR, 1950 Supp.; sec. 2, E. O. 10200, Jan. 3, 1951, 16 F. R. 61; 3 CFR, 1951 Supp.; secs. 402, 405, E. O. 10281, Aug. 28, 1951, 16 F. R. 8789; 3 CFR, 1951 Supp.

SECTION 1. *Definitions.* (a) "Person" means any individual, corporation, partnership, association, or any other organized group of persons, and includes any agency of the United States Government or of any other government. A person who keeps separate inventory records for any separate operating or producing unit shall treat each such separate operating or producing unit as a separate person for the purpose of this direction, unless NPA otherwise directs or permits upon application of such person.

(b) "Melter" means a person who produces an alloy product (which may be either ferrous or nonferrous) by melting.

(c) "Alloy scrap" means ferrous or nonferrous scrap containing 0.5 percent or more of nickel. (Reference is made to the exceptions contained in section 6 of this direction.)

SEC. 2. *Segregation required.* Any person, except a melter, who, as a result of a production or manufacturing operation, generates during any calendar month a total of 20 gross tons or more of alloy scrap, shall segregate such scrap into the appropriate type or types indicated in List A of this direction.

SEC. 3. *Sale and delivery.* (a) No person shall accept delivery of any of the types of alloy scrap described in List A of this direction which have been segregated into lots of 20 gross tons or more, except where such scrap is to be used for melting pursuant to section 5 of this direction, or except where such scrap is purchased for resale as permitted in paragraphs (b) and (c) of this section.

(b) Any person, except a melter, who, as a result of a production or manufacturing operation, generates alloy scrap shall, as soon as he has accumulated or otherwise holds 20 gross tons or more of any type of alloy scrap, offer it for sale and immediate shipment to a melter or scrap dealer or to a broker for further immediate shipment by him to a melter. If his terms of sale are met, he shall make delivery of all such scrap to the purchaser, but if his terms of sale are not met, he shall report the tonnage of each type of scrap offered, the proposed terms of sale, the names of the persons to whom offered, and any other pertinent information in writing to NPA, Washington 25, D. C., Ref: M-20, Dir. 1, within 10 days from the date on which he accumulated the minimum tonnage of scrap specified in this paragraph.

(c) Any scrap dealer, or any other person (except a melter or generator) who accumulates alloy scrap shall, as soon as he has accumulated 20 gross tons or more of any type of alloy scrap, offer it for sale and immediate shipment to a melter or to a broker for further immediate shipment by him to a melter. If his terms of sale are met, he shall make delivery of all such scrap to the purchaser, but if his terms of sale are not met, he shall report the tonnage of each type of scrap offered, the proposed terms of sale, the names of the persons to whom offered, and any other pertinent information in writing to NPA, Washington 25, D. C., Ref: M-20, Dir. 1, within 10 days from the date on which he accumulated the minimum tonnage of scrap specified in this paragraph.

SEC. 4. *Mingling prohibited.* No person shall (except in melting pursuant to section 5 of this direction) mingle alloy scrap segregated pursuant to section 2 of this direction with scrap which is unclassified or of a different type, or ship or deliver such scrap without clearly identifying the type to which it belongs.

SEC. 5. *Use limitation.* No person shall melt any alloy scrap except in the production of ferrous or nonferrous alloys in which nickel is required.

SEC. 6. *Exceptions.* The provisions of this direction shall not be applicable to copper scrap or copper-base alloy scrap (as defined in NPA Order M-16) nor to aluminum scrap (as defined in NPA Order M-22).

SEC. 7. *Reports.* Each person who purchases any alloy scrap for melting shall report to NPA by the seventh day of each month on Form NPAF-113 his inventory at beginning and end of the month and his receipts during the month, beginning with the report for September 1952, for each type of scrap indicated on List A of this direction.

This direction, as amended, shall take effect October 15, 1952.

NATIONAL PRODUCTION AUTHORITY,
By GEORGE W. AUXIER,
Executive Secretary.

LIST A OF NPA ORDER M-20—NICKEL ALLOYS

Type	*Name*	*AISI Specification No.*
1.	Nickel types and nickel chromium types (nickel 1.0% to 5.25%).	2300, 2500, 3100, and 3300 series.
2.	Nickel molybdenum types and high nickel chromium molybdenum (nickel 1.0% to 5.25%).	4300, 4600, 4800, 9300, and 9800 series.
3.	Low nickel chromium molybdenum types (nickel under 1.0%, molybdenum 0.08% to 0.65%).	8600, 8700, and 9700 series.
4.	Stainless steel 6.0% to 12.0% nickel	301, 302, 303, 304, 305, 308, and 321.
5.	Stainless steel 12.0% to 22.0% nickel	309, 310, 311, and 314.
6.	Stainless steel 10.0% to 14.0% Ni, 1.75% to 4.0% Mo	316, 317, and 318.
7.	Stainless steel 9.0% to 12.0% Ni plus Cb or CbTa	347.

LIST A OF NPA ORDER M-20—NICKEL ALLOYS—Continued

Type	Name	AISI Specification No.
8.	Stainless steel 1.25% to 2.50% nickel	414 and 431.
9.	16-25-6 alloy, 25% nickel	
10.	Inconel, 70%+ nickel	
11.	Nimonic, 70%+ nickel	
12.	S816 etc., 20%+ nickel with Co, Cr, W, Mo, & Cb	
13.	Monel, 65%+ nickel	
14.	Nickel, 95%+ nickel	
15.	Other nickel alloys (not described in types 1 to 14, inclusive—give complete composition).	

[F. R. Doc. 52-11304; Filed, Oct. 15, 1952; 11:29 a. m.]

Chapter XXI—Office of Rent Stabilization, Economic Stabilization Agency

[Rent Regulation 1, Amdt. 81 to Schedule A]

[Rent Regulation 2, Amdt. 79 to Schedule A]

RR 1—HOUSING

RR 2—ROOMS IN ROOMING HOUSES AND OTHER ESTABLISHMENTS

SCHEDULE A—DEFENSE-RENTAL AREAS

NEW HAMPSHIRE AND MAINE

These amendments are issued as a result of joint certification(s) pertaining to critical defense housing areas by the Secretary of Defense and the Director of Defense Mobilization under section 204 (l) of the Housing and Rent Act of 1947, as amended, and a determination as to the relaxation of real estate construction credit controls under section 204 (m) of said act.

Effective October 6, 1952, Rent Regulation 1 and Rent Regulation 2 are amended so that the item(s) of Schedule A read(s) as set forth below.

(Sec. 204, 61 Stat. 197, as amended; 50 U. S. C. App. Sup. 1894)

Issued this 13th day of October 1952.

JAMES MCI. HENDERSON,
Director of Rent Stabilization.

State and name of defense-rental area	Class	County or counties in defense-rental area under regulation	Maximum rent date	Effective date of regulation
New Hampshire				
(187) Portsmouth, N. H.-Kittery, Maine.	B	In Maine—in York County, the town of Kittery	Mar. 1, 1942	Dec. 1, 1942
	C	do	Mar. 1, 1952	Oct. 6, 1952
	A	do	do	Do.
		In Maine—in York County, the towns of Berwick, Eliot, North Berwick, South Berwick, and York. In New Hampshire—in Rockingham County, the city of Portsmouth, and the towns of Atkinson, Brentwood, Danville, Deerfield, East Kingston, Epping, Exeter, Fremont, Greenland, Hampstead, Hampton, Hampton Falls, Kensington, Kingston, New Castle, Newfields, Newington, Newmarket, Newton, North Hampton, Northwood, Nottingham, Plaistow, Raymond, Rye, Sandown, Seabrook, South Hampton and Stratham; Strafford County, except the towns of Middleton and New Durham.		

[F. R. Doc. 52-11243; Filed, Oct. 15, 1952; 8:52 a. m.]

[Rent Regulation 1, Amdt. 82 to Schedule A]

[Rent Regulation 2, Amdt. 80 to Schedule A]

RR 1—HOUSING

RR 2—ROOMS IN ROOMING HOUSES AND OTHER ESTABLISHMENTS

SCHEDULE A—DEFENSE-RENTAL AREAS

MAINE

Effective October 6, 1952, Rent Regulation 1 and Rent Regulation 2 are amended so that the item of Schedule A reads as set forth below.

(Sec. 204, 61 Stat. 197, as amended; 50 U. S. C. App. Sup. 1894)

Issued this 13th day of October 1952.

JAMES MCI. HENDERSON,
Director of Rent Stabilization.

State and name of defense-rental area	Class	County or counties in defense-rental area under regulation	Maximum rent date	Effective date of regulation
Maine				
(137) Portland	B	In Androscoggin County, the city of Lewiston; and in Androscoggin and Cumberland Counties, any other locality in which rent control is continued beyond Sept. 30, 1952, under the provisions of sec. 204 (f) (1) of the act.	Mar. 1, 1942	Aug. 1, 1942
	B	In York County, the cities of Biddleford and Saco, and the town of Sanford.	do	Dec. 1, 1942

[F. R. Doc. 52-11241; Filed, Oct. 15, 1952; 8:51 a. m.]

[Rent Regulation 3, Amdt. 86 to Schedule A]

[Rent Regulation 4, Amdt. 30 to Schedule A]

RR 3—HOTELS

RR 4—MOTOR COURTS

SCHEDULE A—DEFENSE-RENTAL AREAS

NEW HAMPSHIRE AND MAINE

These amendments are issued as a result of joint certification(s) pertaining to critical defense housing areas by the Secretary of Defense and the Director of Defense Mobilization under section 204 (l) of the Housing and Rent Act of 1947, as amended, and a determination as to the relaxation of real estate construction credit controls under section 204 (m) of said act.

Effective October 6, 1952, Rent Regulation 3 and Rent Regulation 4 are amended so that the item(s) of Schedule A read(s) as set forth below.

(Sec. 204, 61 Stat. 197, as amended; 50 U. S. C. App. Sup. 1894)

Issued this 13th day of October 1952.

JAMES MCI. HENDERSON,
Director of Rent Stabilization.

Name of defense-rental area	State	County or counties in defense-rental area under regulation	Maximum rent date	Effective date of regulation
(187) Portsmouth, N. H.-Kittery, Maine.	New Hampshire.	In Rockingham County, the city of Portsmouth, and the towns of Atkinson, Brentwood, Danville, Deerfield, East Kingston, Epping, Exeter, Fremont, Greenland, Hampstead, Hampton, Hampton Falls, Kensington, Kingston, New Castle, Newfields, Newington, Newmarket, Newton, North Hampton, Northwood, Nottingham, Plaistow, Raymond, Rye, Sandown, Seabrook, South Hampton and Stratham; Strafford County, except the towns of Middleton and New Durham.	Mar. 1, 1952	Oct. 6, 1952
	Maine.....	In York County, the towns of Berwick, Eliot, Kittery, North Berwick, South Berwick, and York.	.....do.....	Do.

[F. R. Doc. 52-11242; Filed, Oct. 15, 1952; 8:51 a. m.]

TITLE 35—PANAMA CANAL

Chapter I—Canal Zone Regulations

Part 4—Operation and Navigation of Panama Canal and Adjacent Waters

Load and Trim; Chocks and Bitts

Pursuant to the authority vested in the Governor by Rule 9, Executive Order No. 4314 of September 25, 1925 (35 CFR 4.11), §§ 4.3 and 4.42 are hereby amended to read as follows:

§ 4.3 *Load and trim.* All vessels shall be properly trimmed before transiting the Canal. No vessel shall be permitted to transit while having a list of more than 10° or while she is so loaded or is so trimmed as to dangerously affect her maneuverability. Any vessel having a list between 3° and 10°, or which is so loaded or so trimmed as to affect her maneuverability, will be denied transit unless the master, in the presence of the pilot, signs an undertaking releasing the Panama Canal Company from, and indemnifying it against, any loss, damage, or liability which may result from injury to the vessel or its cargo, to other vessels or their cargo, or to Canal structures or equipment, or from injury to or death of any person, where any such injury or death is caused in whole or in part by any such condition of the vessel. Nothing shall be done, or permitted to be done, by the master or any other member of the crew, which would materially alter the trim of a vessel while it is transiting, without the prior, express approval of the pilot.

§ 4.42 *Chocks and bitts.* For each towing wire used the ship shall be fitted with a heavy closed chock and a heavy pair of bitts, capable of withstanding a strain of 50,000 pounds on the towing wire from any angle, and a straight clear lead shall be provided from each chock to the securing bitts. The most suitable installations for the bow and stern towing chocks are large chocks set thwartships right in the stem and in the stern, respectively. Such chocks and bitts shall be double the size and strength given above. Both bow wires and both stern wires shall be run through such chocks. For 6-locomotive ships there shall be, in addition, a chock on each side forward of amidships, and for 8-locomotive ships, two additional chocks on each side, one set of two about one-third the ship's length abaft the bow, and the other set of two the same distance forward of the stern. If a vessel fails to meet, substantially, the requirements of this section, it will be denied transit unless the master thereof, in the presence of the pilot, signs an undertaking releasing the Panama Canal Company from, and indemnifying it against, any loss, damage, or liability which may result from injury to the vessel or its cargo, to other vessels or their cargo, or to Canal structures or equipment, or from injury to or death of any person, where any such injury or death is caused in whole or in part by such failure of the vessel to meet, substantially, the requirements of this section.

(Sec. 5, 37 Stat. 562, as amended; 2 C. Z. Code 9, 48 U. S. C. 1318, E. O. 4314, Sept. 25, 1925)

Issued at Balboa Heights, Canal Zone, October 2, 1952.

J. S. Seybold,
Governor of the Canal Zone.

[F. R. Doc. 52-11220; Filed, Oct. 15, 1952; 8:48 a. m.]

TITLE 50—WILDLIFE

Chapter I—Fish and Wildlife Service, Department of the Interior

Subchapter C—Management of Wildlife Conservation Areas

Part 31—Pacific Region

Subpart—Red Rock Lakes Migratory Waterfowl Refuge, Montana

Moose Hunting Permitted

Basis and purpose. On the basis of observations and reports of field representatives of the Fish and Wildlife Service and of the Montana Fish and Game Commission, it has been determined that certain lands in addition to those opened to moose hunting by regulations published in the Federal Register of August 29, 1952 (17 F. R. 7905), also can be opened to the hunting of moose.

Since the following regulation is a relaxation of existing restrictions applicable to the Red Rock Lakes Migratory Waterfowl Refuge, notice and public procedure thereon are not required (60 Stat. 237; 5 U. S. C. 1001, et seq.).

Effective on the date of publication of this document in the Federal Register, § 31.291 is revised to read as follows:

§ 31.291 *Moose hunting permitted.* Moose may be taken with firearms during the 1952 State season for the hunting of moose on the refuge lands lying south and east of Elk Springs Creek, Shambow Creek and Shambow Pond in the following subdivisions:

Sections 5, 6, 7, 8, 17, 18, and 19, T. 14 S., R. 1 E., section 31, T. 13 S., R. 1 E., and sections 1, 2, 3, 10, 11, 12, 13, 14, 15, and 20 to 30, inclusive, T. 14 S., R. 1 W., M. P. M.,

subject to the provisions, conditions, and requirements of §§ 31.292 and 31.293.

(Sec. 10, 45 Stat. 1224; 16 U. S. C. 715i)

Dated: October 9, 1952.

O. H. Johnson,
Acting Director.

[F. R. Doc. 52-11212; Filed, Oct. 15, 1952; 8:45 a. m.]

Part 35—Northeastern Region

Subpart—Montezuma National Wildlife Refuge, New York

Deer Hunting

Basis and purpose. On the basis of observations and reports of field representatives of the Fish and Wildlife Service and the Division of Fish and Game of the State of New York Conservation Department, it has been determined that a surplus of deer exists on and in the vicinity of the Montezuma National Wildlife Refuge, New York, the removal of which can best be accomplished by public hunting on a portion of the refuge.

Since the following regulations are relaxations of existing restrictions applicable to the Montezuma National Wildlife Refuge, notice and public procedure thereon are not required (60 Stat. 237; 5 U. S. C. 1001, et seq.).

Effective on the date of publication of this document in the Federal Register, the following subpart is added:

Subpart—Montezuma National Wildlife Refuge, New York

Deer Hunting

Sec.
35.21 Deer hunting permitted.
35.22 Entry.
35.23 State hunting laws.
35.24 State cooperation.

Authority: §§ 35.21 to 35.24 issued under sec. 10, 45 Stat. 1224; 16 U. S. C. 715i.

§ 35.21 *Deer hunting permitted.* Deer may be taken with firearms during the 1952 State season for the hunting of deer on the following designated areas of the Montezuma National Wildlife Refuge, which shall be designated by suitable posting by the refuge officer in charge:

(a) All refuge lands east of May's Point and north of the Clyde River (including the relocated channel of the Clyde River).

(b) All refuge lands south of the New York State Throughway right-of-way, and west of Highway 414.

(c) All refuge lands south of Highway 5 and 20, bounded on the north by the cleared power line right-of-way bordering said highway; on the east by a refuge patrol road; on the southeast by a power line crossing the southeast corner of the refuge; on the south by the cleared right-of-way of a telephone cable line; and on the west by the refuge boundary,

subject to the provisions, conditions, and requirements of §§ 35.22 through 35.24, inclusive.

§ 35.22 *Entry.* Entry on and use of the refuge are governed by the regulations in Parts 18 and 21 of this chapter, and strict compliance therewith is required. Hunters must follow such routes of travel within the refuge as are designated by posting by the officer in charge. When entering or leaving the public hunting area, hunters must report at such checking stations as may be established for the purpose of regulating the hunt.

§ 35.23 *State hunting laws.* Strict compliance with all State laws and regulations is required, and any person who hunts on the refuge must have in his possession and exhibit at the request of any authorized Federal or State officer a valid State hunting license for the taking of deer, if such is required by the State laws and regulations, which license shall serve as a Federal permit for the hunting of deer on the refuge.

§ 35.24 *State cooperation.* State cooperation may be enlisted in the regulation, management, and operation of the public hunting area, and the State may promulgate such special regulations as may be necessary for such regulation, management, and operation. In the event that such State regulations are issued, compliance therewith shall be a requisite to the lawful entry for the purpose of hunting.

Dated: October 9, 1952.

O. H. JOHNSON,
Acting Director.

[F. R. Doc. 52-11211; Filed, Oct. 15, 1952; 8:45 a. m.]

NOTICES

DEPARTMENT OF THE INTERIOR

Bureau of Land Management

ARIZONA

AIR-NAVIGATION SITE WITHDRAWAL, ARIZONA NO. 1

OCTOBER 9, 1952.

By virtue of the authority contained in section 4 of the act of May 24, 1928, 45 Stat. 729 (49 U. S. C. 214), and in section 7 of the act of June 28, 1934, 48 Stat. 1272, as amended by the act of June 26, 1936, 49 Stat. 1976 (43 U. S. C. 315f), and pursuant to section 2.22 (a) of Delegation Order No. 427 of August 16, 1950 (15 F. R. 5641), it is ordered as follows:

Subject to valid existing rights and the provisions of existing withdrawals, the following-described public lands in Arizona are hereby withdrawn from all forms of appropriation under the public-land laws and reserved for the use of the Civil Aeronautics Administration, Department of Commerce, in the maintenance of air-navigation facilities, the reservation to be known as Air-Navigation Site Withdrawal, Arizona No. 1:

GILA AND SALT RIVER MERIDIAN

T. 16 N., R. 21 W., sec. 14, N½S½SE¼SW¼, S½N½SE¼SW¼, S½NW¼SW¼SE¼ and N½SW¼SW¼SE¼.

containing approximately 30 acres.

This order shall take precedence over, but not otherwise affect, the order of the Secretary of the Interior of March 6, 1936, establishing Arizona Grazing District No. 2, so far as it affects the above-described lands.

It is intended that the above-described lands shall be returned to the administration of the Department of the Interior when they are no longer needed for the purpose for which they are reserved.

E. R. SMITH,
Regional Administrator.

[F. R. Doc. 52-11215; Filed, Oct. 15, 1952; 8:46 a. m.]

ARIZONA

ORDER OF RESTORATION FROM POWER PROJECT NO. 30

OCTOBER 9, 1952.

Pursuant to an order of the Federal Power Commission, dated April 8, 1947, vacating withdrawal of June 17, 1922 for Power Project No. 30, and in accordance with Order No. 427, section 2.22 (a) (4) of the Director, Bureau of Land Management approved August 16, 1950 (15 F. R. 5641), it is ordered as follows:

Subject to valid existing rights and the provisions of existing withdrawals, the lands hereinafter described, so far as they were withdrawn or reserved for power purposes, are hereby restored to disposition under any applicable public-land law:

GILA AND SALT RIVER MERIDIAN

T. 10 N., R. 18 W.,
Secs. 5, 6, and 7.
T. 11 N., R. 18 W.,
Secs. 3, 4, 5, 8, 9, 10, 11, 14, 15, 21, 22, 23, 26, 27, 28, 31, 33, 34, and 35.
T. 12 N., R. 18 W.,
Secs. 19, 29, 30, 31, 32, and 33.
T. 10 N., R. 19 W.,
Secs. 1, 11, 12, 13, 14, 15, 22, 23, 26, and Lot 5 and NW¼NE¼ of 27.
T. 12 N., R. 19 W.,
Secs. 4, 5, 6, 7, 8, 9, 10, 14, 15, 22, 23, 24, and 25.
T. 13 N., R. 19 W.,
Secs. 30 and 31.
T. 13 N., R. 20 W.,
Secs. 4, 8, SW¼ of 14, 20, 22, W½ of 24, and 26.
T. 14 N., R. 20 W.,
Secs. 5, 6, 7, 8, 17, 18, 19, 20, 21, 28, 29, and 33.
T. 14 N., R. 20½ W.,
Secs. 1, 2, and 12.
T. 15 N., R. 20½ W.,
Secs. 2, 3, 10, 11, 14, 15, 22, 23, 24, 25, 26, and 35.
T. 15 N., R. 21 W.,
Secs. 11, 12, 13, 24, and 25.
T. 16 N., R. 21 W.,
Secs. 6, 8, 18, 20, 22, 26, 28, and 34.
T. 17 N., R. 21 W.,
Secs. 18, 20, and 28.
T. 17 N., R. 22 W.,
Secs. 4, 10, 14, 22, and 24.

The areas described, including both public and non-public lands, aggregate 46,579.62 acres.

All of the lands above described are embraced in first form reclamation withdrawal. Some of these lands are withdrawn for the Havasu Lake National Wildlife Refuge.

The public lands in the above described areas shall be subject to application by the State of Arizona for a period of ninety days from the date of publication of this order in the FEDERAL REGISTER for rights-of-way for public highways or as a source of material for the construction and maintenance of such highways, as provided by section 24 of the Federal Power Act, as amended.

This order shall not otherwise become effective to change the status of such lands until 10:00 a. m. on the 91st day after the date of publication.

E. R. SMITH,
Regional Administrator.

[F. R. Doc. 52-11216; Filed, Oct. 15, 1952; 8:46 a. m.]

NEW MEXICO

AIR NAVIGATION SITE WITHDRAWAL NO. 125; REDUCED

OCTOBER 9, 1952.

In accordance with the authority contained in section 4 of the act of May 24, 1928, 45 Stat. 728 (49 U. S. C. 214), and pursuant to section 2.22 (a) of Delegation Order No. 427 of August 16, 1950 (15 F. R. 5641), it is ordered as follows:

Departmental Order of April 27, 1939, modified June 10, 1939, withdrawing certain lands in New Mexico for use by the Department of Commerce in the maintenance of air navigation facilities, is hereby revoked so far as it affects the following-described lands:

NEW MEXICO PRINCIPAL MERIDIAN

T. 24 S., R. 3 E., sec. 26, NW¼SE¼, E½SW¼ and SW¼SW¼.

containing 160 acres.

The lands are situated on the west slope of Bishop's Cap Mountain approximately 15 miles southeast of Las Cruces, New Mexico. The slope varies from about 7 percent to 70 percent and the soil is mostly sandstone. These lands will not be subject to occupancy or disposition under any nonmineral public land law until they have been classified. It is unlikely that the lands will be classified for homestead, desert land, or small tract uses.

This order shall become effective immediately as to administration of grazing on these lands by the Bureau of Land Management, but shall not otherwise become effective to change the status of such lands until 10:00 a. m. on the 35th day after the date hereof. At that time the said lands shall become subject to application, petition, and selection, subject to valid existing rights, the pro-

visions of existing withdrawals, the requirements of applicable law, and the 90-day preference right filing period for veterans and others entitled to preference under the act of September 27, 1944 (58 Stat. 747; 43 U. S. C. 279–284), as amended.

Information showing the period during which, and the conditions under which veterans and others may file applications for these lands may be obtained on request from the U. S. Land and Survey Office, Santa Fe, New Mexico.

E. R. SMITH,
Regional Administrator.

[F. R. Doc. 52–11214; Filed, Oct. 15, 1952; 8:46 a. m.]

UTAH

NOTICE OF FILING OF PLATS OF SURVEY

OCTOBER 7, 1952.

Notice of filing of plats of survey in Tps. 7 and 8 S., R. 21 E., S. L. M., Utah, accepted April 18, 1952.

Notice is given that the plats of (1) dependent resurvey of sections 1 to 6, inclusive, T. 8 S., R. 21 E., and sections 19, 20, 21, 28 to 33, inclusive, T. 7 S., R. 21 E., S. L. M., Utah, and (2) survey of previously omitted lands hereinafter described, will be officially filed in the Land and Survey Office, Salt Lake City, Utah, at 10:00 a. m. on December 9, 1952.

The lands affected by this notice are described as follows:

SALT LAKE MERIDIAN

T. 7 S., R. 21 E.,
Sec. 19, lot 13;
Sec. 20, lot 9;
Sec. 29, lots 16 and 18;
Sec. 30, lots 12, 13, and 14;
Sec. 31, lots 10 to 16, inclusive;
Sec. 32, lots 11 to 16, inclusive.
T. 8 S., R. 21 E.,
Sec. 6, lots 12 to 15, inclusive.

The area described aggregates 669.21 acres.

All of the above lands were temporarily withdrawn by Executive Order No. 5327 of April 15, 1930, as oil shale lands.

All the above lands were temporarily withdrawn by the Secretary of the Interior on September 26, 1933, for the Uncompahgre Indians and modified by him August 24, 1945, to permit oil and gas leasing.

Anyone having a valid settlement or other right to any of these lands initiated prior to the withdrawals should assert the same within three months from the date on which the plats are officially filed by filing an application under the appropriate public-land law, setting forth all facts relevant thereto.

All inquiries relating to these lands should be addressed to the Manager, Land and Survey Office, Salt Lake City, Utah.

ERNEST E. HOUSE,
Manager.

[F. R. Doc. 52–11213; Filed, Oct. 15, 1952; 8:45 a. m.]

Bureau of Reclamation

BOISE PROJECT, IDAHO

ORDER OF REVOCATION

MAY 21, 1952.

Pursuant to the authority delegated by Departmental Order No. 2515 of April 7, 1949 (14 F. R. 1937), I hereby revoke Departmental Order of December 22, 1903, insofar as said order affects the following described lands; provided, however, that such revocation shall not affect the withdrawal of any other lands by said order or affect any other orders withdrawing or reserving the lands hereinafter described:

BOISE MERIDIAN, IDAHO

T. 1 S., R. 1 W.,
Sec. 5, SW¼NW¼;
Sec. 7, SE¼NE¼.

The above areas aggregate 80 acres.

G. W. LINEWEAVER,
Assistant Commissioner.

OCTOBER 10, 1952.

I concur. The records of the Bureau of Land Management will be noted accordingly.

The lands are chiefly valuable for grazing.

No applications for these lands may be allowed under the homestead, small tract, desert land, or any other non-mineral public land laws, unless the lands have already been classified as valuable or suitable for such type of application, or shall be so classified upon consideration of an application.

This order shall not otherwise become effective to change the status of such lands until 10:00 a. m. on the 35th day after the date of this order. At that time the said lands shall, subject to valid existing rights and the provisions of existing withdrawals, become subject to application, petition, location, and selection as follows:

(a) *Ninety-one day period for preference-right filings.* For a period of 91 days, commencing at the hour and on the day specified above, the public lands affected by this order shall be subject only to (1) application under the homestead or the desert-land laws or the Small Tract Act of June 1, 1938, 52 Stat. 609 (43 U. S. C. 682a), as amended, by qualified veterans of World War II and other qualified persons entitled to preference under the act of September 27, 1944, 58 Stat. 747 (43 U. S. C. 279–284), as amended, subject to the requirements of applicable law, and (2) application under any applicable public-land law, based on prior existing valid settlement rights and preference rights conferred by existing laws or equitable claims subject to allowance and confirmation. Applications under subdivision (1) of this paragraph shall be subject to applications and claims of the classes described in subdivision (2) of this paragraph. All applications filed under this paragraph either at or before 10:00 a. m. on the 35th day after the date of this order shall be treated as though filed simultaneously at that time. All applications filed under this paragraph after 10:00 a. m. on the said 35th day shall be considered in the order of filing.

(b) *Date for non-preference-right filings.* Commencing at 10:00 a. m. on the 126th day after the date of this order, any lands remaining unappropriated shall become subject to such application, petition, location, selection, or other appropriation by the public generally as may be authorized by the public-land laws. All such applications filed either at or before 10:00 a. m. on the 126th day after the date of this order, shall be treated as though filed simultaneously at the hour specified on such 126th day. All applications filed thereafter shall be considered in the order of filing.

A veteran shall accompany his application with a complete photostatic, or other copy (both sides), of his certificate of honorable discharge, or of an official document of his branch of the service which shows clearly his honorable discharge as defined in § 181.36 of Title 43 of the Code of Federal Regulations, or constitutes evidence of other facts upon which the claim for preference is based and which shows clearly the period of service. Other persons claiming credit for service of veterans must furnish like proof in support of their claims. Persons asserting preference rights, through settlement or otherwise, and those having equitable claims, shall accompany their applications by duly corroborated statements in support thereof, setting forth in detail all facts relevant to their claims.

Applications for these lands, which shall be filed in the Land and Survey Office, Boise, Idaho, shall be acted upon in accordance with the regulations contained in § 295.8 of Title 43 of the Code of Federal Regulations and Part 296 of that title, to the extent that such regulations are applicable. Applications under the homestead laws shall be governed by the regulations contained in Parts 166 to 170, inclusive, of Title 43 of the Code of Federal Regulations, and applications under the desert-land laws and the said Small Tract Act of June 1, 1938, shall be governed by the regulations contained in Parts 232 and 257, respectively, of that title.

Inquiries concerning these lands shall be addressed to the Manager, Land and Survey Office, Boise, Idaho.

WILLIAM ZIMMERMAN, Jr.,
Associate Director,
Bureau of Land Management.

[F. R. Doc. 52–11217; Filed, Oct. 15, 1952; 8:47 a. m.]

Office of the Secretary

[Order 2018, Amdt. 2]

COMMISSIONER OF RECLAMATION

DELEGATION OF AUTHORITY WITH RESPECT TO COLUMBIA BASIN PROJECT

OCTOBER 8, 1952.

New subsections (r), (s), (t), and (u), reading as follows are added to section 1 of Order No. 2018:

(r) To approve the form of affidavit required in connection with leases be-

tween landowners and lessees of farm units or portions thereof on the Columbia Basin Project which are covered by recordable contracts.

(s) To suspend, where the total area of irrigable lands under the control of a lessee does not exceed 160 acres for which the United States is prepared to deliver water, with the consent of the irrigation districts involved, the enforcement of the provisions of Article 12 of said recordable contracts which require all landowners to obtain and submit from their lessees, in connection with leases of farm units or portions thereof on the project covered by said contracts, executed affidavits on an approved form stating and describing the total area of project lands under the control of their lessees as owner and lessee, until such time as the need for enforcing those provisions becomes apparent or their enforcement is requested by said irrigation districts.

(t) To accept such affidavits under said recordable contracts, in cases where the enforcement of the provisions relating thereto is not suspended under the preceding subsection, when submitted by either the landowner or his lessee.

(u) To review the terms and conditions of leases of farm units or portions thereof on the Columbia Basin Project covered by recordable contracts where the leaseholds or the combined leaseholds and ownership of the lessee exceed 160 irrigable acres of project lands for which the United States is prepared to deliver water; to require the furnishing of such material as may be necessary in connection with the review of such leases or of the operations thereunder; to determine that the terms and conditions of those leases are satisfactory and in keeping with the purposes of the Columbia Basin Project Act (57 Stat. 14), as amended, and that operations thereunder would be beneficial to the lands involved; and, after making those affirmative determinations, to approve such leases.

VERNON D. NORTHROP,
Acting Secretary of the Interior.

[F. R. Doc. 52-11218; Filed, Oct. 15, 1952; 8:47 a. m.]

FEDERAL COMMUNICATIONS COMMISSION

[Change List No. 72]

CANADIAN BROADCAST STATIONS

LIST OF CHANGES, PROPOSED CHANGES, AND CORRECTIONS IN ASSIGNMENTS

SEPTEMBER 19, 1952.

Notification under the provisions of Part III, Section 2 of the North American Regional Broadcasting Agreement.

List of changes, proposed changes, and corrections in assignments of Canadian Broadcast Stations modifying appendix containing assignments of Canadian Broadcast Stations (Mimeograph 47214-3) attached to the recommendations of the North American Regional Broadcasting Agreement Engineering Meeting, January 30, 1941.

CANADA

Call letters	Location	Power (kw)	Radiation	Time designation	Class	Probable date to commence operation
			1060 kilocycles			
New	Quebec	5	DA-1	U	II	Oct. 1, 1953.
			1140 kilocycles			
CBI	Sydney, Nova Scotia	5	DA-1	U	II	Do.
			1230 kilocycles			
CJEM	Edmundston, New Brunswick	.25	ND	U	IV	Delete assignment.
			1240 kilocycles			
CKLS	LaSarre, Quebec	.25	ND	U	IV	Change in call letters from CK1S.
			1570 kilocycles			
CBH	Halifax, Nova Scotia	5	DA-1	U	II	Oct. 1, 1953.
New	Montreal, Quebec	5	DA-1	U	II	Do.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] T. J. SLOWIE,
Secretary.

[F. R. Doc. 52-11230; Filed, Oct. 15, 1952; 8:51 a. m.]

[Change List No. 8]

CUBAN BROADCAST STATIONS

LIST OF CHANGES, PROPOSED CHANGES, AND CORRECTIONS IN ASSIGNMENTS

SEPTEMBER 11, 1952.

Notification of new Cuban radio stations, and of changes, modifications and deletions of existing stations, in accordance with Part III, Section F, of the North American Regional Broadcasting Agreement, Washington, D. C.

REPUBLIC OF CUBA

Call letters	Location	Power (kw)	Antenna	Schedule	Class	Proposed date of change or commencement of operation
			1070 kilocycles			
CMKS	Guantanamo, Oriente	0.25	ND	U	II	Mar. 11, 1953.
			1110 kilocycles			
CMKS	Guantanamo, Oriente (PO: 900 kc; vide 1070 kc).	.25	ND	U	II	Delete.
CMKI	Guantanamo, Oriente (PO: 1400 kc)	.25	ND	U	II	Mar. 11, 1953.
			1400 kilocycles			
CMKL	Guantanamo, Oriente (vide: 1110 kc)	.25	ND	U	IV	Delete.
CMKQ	San Luis, Oriente	.25	ND	U	IV	Mar. 11, 1953.
			1460 kilocycles			
CMKQ	San Luis, Oriente (vide: 1400 kc)	.5	ND	U	III	Delete.
CMKT	Holguin, Oriente (PO: 1520 kc, vide 1550 Annex 3).	.5	ND	U	III	Mar. 11, 1953.
			1480 kilocycles			
CMKT	Holguin, Oriente (vide: 1460 kc)	.25	ND	U	II	Delete Mar. 11, 1953.
			1550 kilocycles			
CMKT	Holguin, Oriente	.25	ND	U	II	Delete from Annex 3.
New	Banes, Oriente (PO: 1560 kc)	.25	ND	U	II	Upon entry into force of the Agreement.
			1560 kilocycles			
New [1]	Banes, Oriente (vide: 1550 kc)	.25	ND	U	II	Delete upon entry into force of Agreement.

[1] This station will be assigned to 1550 kilocycles upon entry into force of the Agreement, meantime it will be maintained on this frequency.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] T. J. SLOWIE,
Secretary.

[F. R. Doc. 52-11231; Filed, Oct. 15, 1952; 8:51 a. m.]

FEDERAL POWER COMMISSION

[Docket No. E-6457]

MONTANA-DAKOTA UTILITIES CO.

NOTICE OF ORDER AUTHORIZING ISSUANCE OF SECURITIES

OCTOBER 10, 1952.

Notice is hereby given that on October 10, 1952, the Federal Power Commission issued its order entered October 10, 1952, authorizing issuance of securities in the above-entitled matter.

[SEAL] J. H. GUTRIDE,
Acting Secretary.

[F. R. Doc. 52-11227; Filed, Oct. 15, 1952; 8:50 a. m.]

[Docket No. G-1677]

COLORADO INTERSTATE GAS CO.

ORDER FIXING DATE OF HEARING

OCTOBER 10, 1952.

On March 20, 1952, Colorado Interstate Gas Company and Public Service Company of Colorado each filed an application for rehearing of the order of the Commission entered on February 20, 1952, issuing a certificate of public convenience and necessity in the above-docketed proceeding.

By order of April 17, 1952, the Commission granted rehearing of said order at a date and place to be fixed by further order of the Commission.

The Commission orders:

(A) A public hearing be held commencing on October 27, 1952, at 10:00 a. m., e. s. t., in the Hearing Room of the Federal Power Commission, 1800 Pennsylvania Avenue NW., Washington, D. C., on the matters raised by the application for a certificate of public convenience and necessity filed herein on April 24, 1951, the findings and order of the Commission entered on February 20, 1952, and the applications for rehearing filed on March 20, 1952.

(B) Interested State Commissions may participate as provided by §§ 1.8 and 1.27 (f) (18 CFR 1.8 and 1.37 (f)) of the Commission's rules of practice and procedure.

Date of issuance: October 10, 1952.

By the Commission.

[SEAL] J. H. GUTRIDE,
Acting Secretary.

[F. R. Doc. 52-11226; Filed, Oct. 15, 1952; 8:50 a. m.]

[Docket Nos. G-1694 G-1695, G-1699, G-1749, G-1777]

CITY GAS CO. OF PHILLIPSBURG, N. J., ET AL.

ORDER FIXING DATE OF HEARING

OCTOBER 9, 1952.

In the matters of City Gas Company of Phillipsburg, New Jersey, Docket No. G-1694; the Manufacturers Light and Heat Company, Docket No. G-1695; Texas Eastern Transmission Corporation, Docket No. G-1699; Penn-Jersey Pipe Line Company, Docket No. G-1749; Allentown-Bethlehem Gas Company, Docket No. G-1777.

On July 3, 1952, the Commission issued its order reinstating the applications filed in each of the above-entitled proceedings, consolidating said proceedings for purpose of hearing, and ordering that said hearing be held at a time and place to be fixed by further order of the Commission.

The application in Docket No. G-1694 was filed on May 25, 1951, by City Gas Company of Phillipsburg, New Jersey (City Gas) for a certificate of public convenience and necessity pursuant to section 7 of the Natural Gas Act, adjudging and ordering that 1,700 Mcf per day of natural gas to be made available to it pursuant to the Commission's Opinion No. 206 and accompanying order, can be economically delivered to it as proposed in said application. Said application proposes that said gas be delivered by Texas Eastern Transmission Corporation (Texas Eastern) to the Manufacturers Light and Heat Company (Manufacturers) for transportation through its Coatesville-Port Jervis pipeline to a point of connection with the facilities of Penn-Jersey Pipe Line Company (Penn-Jersey) where delivery would be made for further transportation by Penn-Jersey to the facilities of City Gas.

The application in Docket No. G-1695 was filed on May 28, 1952, by Manufacturers for a certificate of public convenience and necessity pursuant to section 7 of the Natural Gas Act, authorizing the installation and operation of a connection together with a meter and regulator station at a point on its Coatesville-Port Jervis pipeline in Northampton County, Pennsylvania, for the sale and delivery of natural gas to City Gas.

The application in Docket No. G-1699 was filed on May 31, 1951, by Texas Eastern for a certificate of public convenience and necessity pursuant to section 7 of the Natural Gas Act, authorizing the sale and delivery to Manufacturers of a maximum daily volume of 1,700 Mcf of natural gas for delivery to City Gas pursuant to a condition contained in said Opinion No. 206 and accompanying order.

The application in Docket No. G-1749 was filed on July 17, 1951, by Penn-Jersey, styling itself a de facto corporation, and supplemented on June 6, 1952, by Penn-Jersey, as a corporation de jure, for a certificate of public convenience and necessity pursuant to section 7 of the Natural Gas Act, authorizing the construction and operation of approximately 6 miles of 6-inch (or in part 8-inch) natural gas transmission pipe line between the facilities of Manufacturers and the facilities of City Gas.

The application in Docket No. G-1777 was filed on August 24, 1952, by Allentown-Bethlehem for an order pursuant to section 7 (b) of the Natural Gas Act, authorizing and approving the abandonment of certain natural-gas facilities extending from its distribution system in Pennsylvania to the middle of a bridge crossing the Delaware River, and the discontinuance of the delivery and sale of natural gas by means of said facilities to City Gas.

Each of the above-named applicants has requested that its application be heard under the shortened procedure provided by § 1.32 (b) of the Commission's rules of practice and procedure (18 CFR 1.32 (b)) for noncontested proceedings, and this consolidated proceeding is a proper one for disposition under the aforementioned rule, no request to be heard, protest, or petition raising an issue of substance in opposition to the granting of said applications having been received subsequent to the giving of due notice of the filing thereof, including publication in the FEDERAL REGISTER. Notice of the application filed in Docket No. G-1694 was published on June 9, 1951 (16 F. R. 5504). Notice of the application filed in Docket No. G-1695 was published on June 14, 1951 (16 F. R. 5660). Notice of the application in Docket No. G-1699 was published on June 16, 1951 (16 F. R. 5821). Notice of the application in Docket No. G-1749 was published on July 11, 1952 (17 F. R. 6233). Notice of the application in Docket No. G-1777 was published on September 18, 1951 (16 F. R. 9492).

On June 26, 1951, Allentown-Bethlehem filed petitions seeking leave to intervene in Docket Nos. G-1695 and G-1699. On August 24, 1951, Allentown-Bethlehem filed a petition seeking leave to intervene in Docket No. G-1749. On July 17, 1951, City Gas filed petitions seeking leave to intervene in Docket Nos. G-1695, G-1699, and G-1749, and on September 19, 1951, City Gas filed a petition seeking leave to intervene in Docket No. G-1777. On June 19, 1951, Manufacturers filed a petition seeking leave to intervene in Docket No. G-1694. Each of the foregoing petitions seeking leave to intervene is in support of the application in the proceeding in which said petition was filed. All of said petitions were dismissed without prejudice in the orders of the Commission issued on March 13, 1952, and said petitions were reinstated by order of the Commission issued on July 3, 1952. Concurrently with the adoption of this order, the Commission has adopted an order granting the aforesaid petitions seeking leave to intervene.

The Pennsylvania Public Utility Commission filed notices of intervention in Docket No. G-1694 on June 29, 1951, in Docket Nos. G-1695 and G-1699 on July 2, 1951, and in Docket No. G-1749 on October 31, 1951. Said Commission has advised this Commission that it has no objection to disposition of these proceedings under the shortened procedure provided by the Commission's rules.

The order reinstating the proceedings herein and consolidating said proceedings for purpose of hearing fixed July 23, 1952, as the final date for filing protests or petitions to intervene. Due notice of said order has been given, including publication in the FEDERAL REGISTER on July 10, 1952 (17 F. R. 6206). No protests or petitions have been received since said order was published.

Penn-Jersey has represented to the Commission that in the construction of the proposed pipeline a submarine crossing of the Delaware River is involved. Applicant states that at the present time the water in the river is comparatively

low, but that it will increase during the coming fall and winter. Applicant further states that each day's delay in disposition of this proceeding defers the time for commencement of construction and adds to the possibility that the cost of the crossing may be increased by high water to the point that a delay in construction for another year may become necessary. Applicant has furnished high and low elevations of the Delaware River at the proposed crossing for the years 1950, 1951, and 1952, which indicate that the month of October is the only remaining month in the year 1952 in which the water level is low enough to construct the proposed crossing without expenditure of very large sums of additional cash on account of the higher water to be expected in later months.

The Commission finds: It is reasonable and in the public interest, and good cause exists for fixing the date of hearing in the above-entitled consolidated proceedings less than 15 days after publication of this order in the FEDERAL REGISTER.

The Commission orders:

(A) Pursuant to the authority contained in and subject to the jurisdiction conferred upon the Federal Power Commission by sections 7 and 15 of the Natural Gas Act, and the Commission's rules of practice and procedure, a hearing be held on October 21, 1952, at 9:30 a. m., in the Hearing Room of the Federal Power Commission, 1800 Pennsylvania Avenue NW., Washington, D. C., concerning the matters involved and the issues presented by the applications filed in these proceedings: *Provided, however,* That the Commission may, after a noncontested hearing, forthwith dispose of the proceeding pursuant to the provisions of § 1.32 (b) of the Commission's rules of practice and procedure.

(B) Interested State commissions may participate as provided by §§ 1.8 and 1.37 (f) (18 CFR 1.8 and 1.37 (f)) of the said rules of practice and procedure.

Date of issuance: October 10, 1952.

By the Commission.

[SEAL] J. H. GUTRIDE,
Acting Secretary.

[F. R. Doc. 52-11219; Filed, Oct. 15, 1952; 8:48 a. m.]

[Project No. 943]

PUGET SOUND POWER & LIGHT CO. AND PUBLIC UTILITY DISTRICT NO. 1 OF CHELAN COUNTY, WASH.

NOTICE OF ORDER AMENDING LICENSE

OCTOBER 10, 1952.

Notice is hereby given that on August 7, 1952, the Federal Power Commission issued its order entered July 31, 1952, amending license in the above-entitled matter.

[SEAL] J. H. GUTRIDE,
Acting Secretary.

[F. R. Doc. 52-11228; Filed, Oct. 15, 1952; 8:50 a. m.]

[Project No. 2037]

ELMER E. JOHNSTON

NOTICE OF ORDER ISSUING LICENSE (MINOR)

OCTOBER 10, 1952.

Notice is hereby given that on August 29, 1952, the Federal Power Commission issued its order entered August 26, 1952, issuing license (Minor) in the above-entitled matter.

[SEAL] J. H. GUTRIDE,
Acting Secretary.

[F. R. Doc. 52-11229; Filed, Oct. 15, 1952; 8:50 a. m.]

DEPARTMENT OF JUSTICE

Office of Alien Property

LAURA CONZI ET AL.

NOTICE OF INTENTION TO RETURN VESTED PROPERTY

Pursuant to section 32 (f) of the Trading With the Enemy Act, as amended, notice is hereby given of intention to return, on or after 30 days from the date of the publication hereof, the following property, subject to any increase or decrease resulting from the administration thereof prior to return, and after adequate provision for taxes and conservatory expenses:

Claimant, Claim No., Property, and Location

Laura Conzi, Anna Conzi, Giuitta Maria Conzi, Genoa, Italy; Claim No. 39766; $22.99 in the Treasury of the United States and stock of the De Nobili Cigar Company, a New York corporation, consisting of 4 shares, third preferred capital stock, par value $25 per share, Certificate No. 258, and 2 shares, common capital stock, par value $50 per share, Certificate No. 212, presently in custody of Safekeeping Department, Federal Reserve Bank of New York, at New York City; to Laura, Anna, and Giuitta Maria Conzi.

Executed at Washington, D. C., on October 10, 1952.

For the Attorney General.

[SEAL] ROWLAND F. KIRKS,
Assistant Attorney General,
Director, Office of Alien Property.

[F. R. Doc. 52-11244; Filed, Oct. 15, 1952; 8:52 a. m.]

KAREN ARSTEIN ET AL.

NOTICE OF INTENTION TO RETURN VESTED PROPERTY

Pursuant to section 32 (f) of the Trading With the Enemy Act, as amended, notice is hereby given of intention to return, on or after 30 days from the date of the publication hereof, the following property, subject to any increase or decrease resulting from the administration thereof prior to return, and after adequate provision for taxes and conservatory expenses:

Claimant, Claim No., Property, and Location

Karen Arstein, Askvoll 1 Sunnfjord, Norway; Oline Arstein, Askvoll 1 Sunnfjord, Norway; Paul P. Froynes, Kalvag, Norway; Sigvald Stokkevaag, Stavanger, Norway; Claim No. 1622; $88.89 in the Treasury of the United States to each claimant.

Executed at Washington, D. C., on October 10, 1952.

For the Attorney General.

[SEAL] ROWLAND F. KIRKS,
Assistant Attorney General,
Director, Office of Alien Property.

[F. R. Doc. 52-11245; Filed, Oct. 15, 1952; 8:52 a. m.]

SECURITIES AND EXCHANGE COMMISSION

[File No. 1-2262]

SECURITIES INVESTMENT CO. OF ST. LOUIS

NOTICE OF APPLICATION TO WITHDRAW FROM LISTING AND REGISTRATION, AND OF OPPORTUNITY FOR HEARING

OCTOBER 9, 1952.

Securities Investment Company of St. Louis, pursuant to section 12 (d) of the Securities Exchange Act of 1934 and Rule X-12D2-1 (b) promulgated thereunder, has made application to withdraw its Cumulative Convertible Preferred Stock, $100 Par Value, and its Common Stock, $10 Par Value, from registration and listing on the Midwest Stock Exchange.

The reason stated in the application for withdrawing these securities from registration and listing is that General Contract Corporation on September 8, 1952, became the owner of 95 percent of the preferred stock of applicant and 97 percent of its common stock.

Upon receipt of a request, prior to November 7, 1952, from any interested person for a hearing in regard to terms to be imposed upon the delisting of these securities, the Commission will determine whether to set the matter down for hearing. Such request should state briefly the nature of the interest of the person requesting the hearing and the position he proposes to take at the hearing with respect to imposition of terms or conditions. In addition, any interested person may submit his views or any additional facts bearing on this application by means of a letter addressed to the Secretary of the Securities and Exchange Commission, Washington, D. C. If no one requests a hearing on this matter, this application will be determined by order of the Commission on the basis of the facts stated in the application, and other information contained in the official file of the Commission pertaining to the matter.

By the Commission.

[SEAL] ORVAL L. DUBOIS,
Secretary.

[F. R. Doc. 52-11221; Filed, Oct. 15, 1952; 8:48 a. m.]

[File Nos. 54-127, 59-3, 59-12]

ELECTRIC BOND AND SHARE CO. ET AL

NOTICE OF FILING AND ORDER FOR HEARING CONCERNING APPLICATIONS FOR ALLOWANCES

OCTOBER 10, 1952.

The Commission having, on July 28, 1950, issued its Supplemental Findings

and Opinion (Holding Company Act Release No. 9980), concerning a Plan of Electric Bond and Share Company ("Bond and Share") filed pursuant to section 11 (e) of the Public Utility Holding Company Act of 1935 ("act"), which Plan was designated by Bond and Share as "Plan II–B", which was a portion of certain related plans initially filed by Bond and Share on July 25, 1945, and subsequently amended and supplemented, and which Plan related to the payments to be made to the holders of former $6 Preferred Stock and $5 Preferred Stock of Bond and Share which had previously been retired pursuant to Plans I and II–A of Bond and Share; and

Said Findings and Opinion of the Commission dated July 28, 1950, having held that the $6 Preferred Stock of Bond and Share should receive an additional amount of $10 per share, together with compensation for delay in payment at the rate of 5.45 percent per annum, and that the $5 Preferred Stock should receive no further payment; an amendment having been filed by Bond and Share to Plan II–B on August 4, 1950, conforming said Plan to the determinations of the Commission as set forth in the Commission's Findings and Opinion dated July 28, 1950, and the Commission by order dated August 4, 1950 (Holding Company Act Release No. 10019), having approved Plan II–B as so amended, which order contained, among others, the following provisions:

It is further ordered, That jurisdiction be, and hereby is, reserved with respect to the reasonableness, appropriate allocation, and payment of all fees, expenses, and other remuneration in connection with Plan II–B, as amended.

The Commission having directed that applications for compensation for services or reimbursement for expenses in connection with said Plan be filed with the Commission, and certain applications for that purpose having been filed as hereinafter set forth;

Notice is hereby given that applications for the payment of compensation for services and reimbursement of expenses have been filed by the various parties and participants in said proceeding in the following respective amounts:

Name and capacity	Fees	Expenses	Total
Electric Bond & Share Co.:			
Simpson Thacher & Bartlett, counsel for company	$161,500.00	$13,806.94	$175,306.94
Drexel & Co., financial services, including expert testimony of Edward Hopkinson	45,000.00		45,000.00
Ebasco Services, Inc., financial studies, financial advice, and preparation of documents	84,019.16		84,019.16
Bels & Chandler, financial expert	27,500.00	314.30	27,814.30
The First Boston Corp., financial study	5,000.00		5,000.00
Stuberfield committee for preferred stock certificate holders:			
Percival E. Jackson, counsel for committee	300,000.00	5,942.21	305,942.21
Benjamin Graham, financial expert	13,500.00		13,500.00
William Stuberfield, chairman of committee	3,000.00		3,000.00
Frank Honigman and Eugene E. Ormsten, members of committee, jointly	2,500.00		2,500.00
Cornell preferred stockholders protective committee:			
Hawkins, Delafield & Wood, counsel for committee	150,000.00	[1] 6,037.90	156,037.90
Others:			
Debevoise, Plimpton & McLean, counsel for John Hancock Mutual Life Insurance Co., preferred certificate holder	12,000.00	506.69	12,506.69
Paul J. Kern, counsel for certain $5 preferred certificate holders	6,000.00		6,000.00

[1] Includes payment of $2,500 to Allen W. Kimber, expert witness.

It appearing to the Commission that it is appropriate in the public interest and in the interest of investors that a hearing be held with respect to the matters set forth in said applications:

It is ordered, That a hearing on said applications pursuant to sections 11 (e) and 18 of the act and the rules and regulations thereunder be held on November 18, 1952, at 10:00 a. m., e. s. t., at the offices of this Commission, 425 Second Street NW., Washington 25, D. C. On said date the hearing room clerk will advise as to the room in which such hearing will be held. Any person who is not already a party, or who has not been granted leave to participate herein, who desires to be heard or otherwise wishes to participate, shall file with the Secretary of this Commission, on or before November 12, 1952, a request relative thereto as provided in Rule XVII of the Commission's rules of practice.

It is further ordered, That Edward C. Johnson or any other officer or officers of the Commission designated by it for that purpose shall preside at such hearing. The officer or officers so designated to preside at such hearing are hereby authorized to exercise all powers granted to the Commission under section 18 (c) of the act and to a hearing officer under the Commission's rules of practice.

The Division of Public Utilities of the Commission having advised the Commission that it has made a preliminary examination of said applications and that on the basis thereof, the following matters and questions are presented for consideration without prejudice, however, to the presentation of additional matters and questions upon further examination.

(1) Whether the requested amounts for fees and expenses were incurred in rendering services which were necessary in connection with the reorganization plan and whether the requested amounts are reasonable.

(2) Whether there are any other factors apart from the nature and value of the services rendered and the capacity in which rendered, which would make any of the requests for compensation and reimbursement improper.

It is further ordered, That particular attention be directed at said hearing to the foregoing matters and questions.

It is further ordered, That any person who may wish to assert or claim any fees for services rendered, or reimbursement of expenses incurred, in connection with the foregoing proceedings, who has not already filed an application therefor, shall do so herein on or before November 1, 1952.

It is further ordered, That the Secretary of the Commission shall serve a copy of this order by registered mail, on the parties herein and those who have been given leave to participate in these proceedings and on the applicants herein, that notice of said hearing shall be given to all other persons by general release of this Commission, which shall be distributed to the press and mailed to the mailing list for releases issued under the Public Utility Holding Company Act of 1935, and by publication of this order in the FEDERAL REGISTER.

By the Commission.

[SEAL] ORVAL L. DUBOIS, *Secretary.*

[F. R. Doc. 52–11222; Filed, Oct. 15, 1952; 8:49 a. m.]

[File No. 70–2937]

PHILADELPHIA CO. AND DUQUESNE LIGHT CO.

NOTICE OF FILING REGARDING SALE BY PARENT OF SHARES OF SUBSIDIARY'S COMMON STOCK AND SALE BY SUBSIDIARY OF SHARES OF ITS COMMON STOCK, ALL AT COMPETITIVE BIDDING, AND ORDER FOR HEARING

OCTOBER 10, 1952.

Notice is hereby given that a joint application-declaration, with an amendment thereto, has been filed with this Commission by Philadelphia Company ("Philadelphia"), a registered holding company and a subsidiary of Standard Gas and Electric Company ("Standard") and Standard Power and Light Corporation, both registered holding companies, and by Duquesne Light Company ("Duquesne"), a public utility subsidiary of Philadelphia. Applicants-declarants have designated sections 6, 7, 12 (d) and 12 (f) of the act and Rules U-44 and U-50, promulgated thereunder, as applicable to the proposed transactions which are summarized as follows:

Philadelphia proposes to sell, pursuant to the competitive bidding requirements of Rule U-50, 170,000 shares of common stock of Duquesne which Philadelphia acquired from Duquesne in March of 1952, for a cash consideration of $30 per share. (See Holding Company Act Release No. 11129). The net proceeds of the sale will be used by Philadelphia to repay its existing open account loan from Standard amounting to $2,500,000 and then to the reduction of Philadelphia's outstanding bank loans, presently aggregating $16,000,000.

Simultaneously with the above described sale by Philadelphia, Duquesne proposes, as part of the same offering, to issue and sell, pursuant to the competitive bidding requirements of Rule U-50, 80,000 shares of its common stock. The net proceeds of the sale will be used by Duquesne for construction purposes.

The applicants-declarants request that the ten-day period required by Rule U-50 to elapse between the time of inviting bids and the entering into of an agreement with respect to the sale of the common stock be shortened to six days.

The filing indicates that the issuance and sale by Duquesne of the 80,000 shares

of common stock are subject to the authorization of the Public Utility Commission of Pennsylvania.

The applicants-declarants request that this Commission make the necessary findings and recitals in accordance with Supplement R and section 1808 (f) of the Internal Revenue Code, as amended, and that the Commission's order herein become effective upon issuance.

It appearing to the Commission that it is appropriate in the public interest and in the interest of investors and consumers that a hearing be held with respect to the proposed transactions and that said joint application-declaration should not be granted and permitted to become effective except pursuant to the further order of this Commission:

It is ordered, That a hearing on said application-declaration, as amended, be held on November 12, 1952, at 10:00 a. m., at the offices of the Commission, 425 Second Street NW., Washington 25, D. C. On such date, the Hearing Room Clerk in Room 193 will advise as to the room in which such hearing will be held. Any person desiring to be heard or otherwise wishing to participate in the proceedings, is directed to file with the Secretary of the Commission on or before November 10, 1952, a written request relative thereto as provided by Rule XVII of the Commission's rules of practice.

It is further ordered, That Edward C. Johnson or any other officer or officers of the Commission designated by it for that purpose shall preside at the hearing in such matter. The officer so designated is hereby authorized to exercise all powers granted to the Commission under section 18 (c) of said act and to a hearing officer under the Commission's rules of practice.

The Division of Public Utilities of the Commission having advised the Commission that it has made a preliminary examination of the joint application-declaration, as amended, and that, upon the basis thereof, the following matters and questions are presented for consideration without prejudice to its specifying additional matters and questions upon further examination:

(1) Whether the proposed sale of Duquesne's common stock by Philadelphia meets the standards of section 12 (d) of the act;

(2) Whether the proposed payment by Philadelphia of the open account loan from Standard meets the standards of section 12 (f) of the act;

(3) Whether the issuance and sale of common stock by Duquesne meet the standards of sections 6 and 7 of the act;

(4) What terms and conditions, if any, with respect to the proposed transactions should be prescribed in the public interest or for the protection of investors and consumers;

(5) Generally, whether the proposed transactions comply with the applicable provisions of the act and the rules and regulations and orders promulgated or issued thereunder;

It is further ordered, That particular attention be directed at said hearing to the foregoing matters and questions.

It is further ordered, That the Secretary of the Commission shall serve notice of the aforesaid hearing by mailing copies of this notice and order by registered mail to Philadelphia, Duquesne, Standard, and the Public Utility Commission of Pennsylvania; that notice shall be given to all other persons by general release of this Commission which shall be distributed to the press and mailed to the persons on the mailing list of this Commission for releases under the act, and that further notice be given to all persons by publication of this notice and order in the FEDERAL REGISTER.

By the Commission.

[SEAL] ORVAL L. DUBOIS, *Secretary.*

[F. R. Doc. 52-11224; Filed, Oct. 15, 1952; 8:49 a. m.]

NATIONAL ASSOCIATION OF SECURITIES DEALERS, INC. AND GEORGE T. ANDERSON

NOTICE OF TIME FOR FILING WRITTEN REQUEST FOR HEARING

At a regular session of the Securities and Exchange Commission held at its office in the city of Washington, D. C., on the 10th day of October 1952.

In the matter of the application of National Association of Securities Dealers, Inc., on behalf of a member firm for approval of the firm's continuance in membership in the Association with George T. Anderson, as a controlled person.

The National Association of Securities Dealers, Inc., a registered securities association (hereinafter referred to as the Association), has filed with this Commission, on behalf of a member, an application for approval of the firm's continuance in membership in the Association with George T. Anderson as an employee and controlled person thereof, pursuant to the provisions of section 15A (b) (4) of the Securities Exchange Act of 1934.

The application and exhibits attached thereto set forth, in substance, the following information:

1. George T. Anderson is presently or is to be employed by said member, a registered broker and dealer and a member of the Association in District No. 13, having its principal office in New York, New York.

2. The Commission, by order of July 27, 1950, revoked the broker-dealer registration of Junger, Anderson and Co., of which George T. Anderson was a partner, pursuant to section 15 (b) of the Securities Exchange Act of 1934. George T. Anderson has not engaged in the securities business since that time.

3. George T. Anderson, individually and as a partner of Junger, Anderson and Co., is permanently enjoined from engaging in and continuing certain practices in connection with the purchase and sale of securities.

4. The District Committee for District No. 13 and the Board of Governors of the Association have considered this application and have reviewed the prior proceedings relating to George T. Anderson. Upon consideration of all the facts, including the representations as to the type of activity to be engaged in by George T. Anderson as an employee and controlled person of said member and the extent of the supervision which said member will exercise over his activities, they have concluded that George T. Anderson should be permitted to engage in the securities business as an employee and controlled person of said member and that said member should be continued in membership in the Association. They are of the belief that the continuance of said member in membership in the Association with George T. Anderson as an employee and controlled person thereof would be consonant with the stated purposes and policies of section 15A of the Securities Exchange Act of 1934 and have recommended approval of this application.

Under the provisions of section 15A (b) (4) of the Securities Exchange Act of 1934, as amended, and section 2 of Article I of the Association's By-Laws, said member may not be continued in membership in the Association so long as George T. Anderson is employed by said member, except with the approval of the Securities and Exchange Commission based upon a finding that such approval is appropriate in the public interest.

Notice is hereby given that any interested person may informally present his views or any information relating to this matter by communicating with the Secretary of the Commission or with Peter T. Byrne, Administrator of the Commission's New York Regional Office, 42 Broadway, New York 4, New York, on or before November 7, 1952, and that within the same time any person desiring that a formal hearing be held may file with the Secretary of the Commission a written request to that effect, together with a brief statement of the nature of his interest in the proceeding and the position which he proposes to take. In the absence of such a request by any person having a bona fide interest in the proceedings, the Commission will either set the matter down for hearing on its own motion after appropriate notice or, if it should appear appropriate so to do, will determine the application on the basis of the record and without formal hearing.

This notice shall be served on said member and the association not less than fifteen (15) days prior to November 7, 1952, and published in the FEDERAL REGISTER in the manner prescribed by the Federal Register Act not later than fifteen (15) days prior to November 7, 1952.

By the Commission.

[SEAL] ORVAL L. DUBOIS, *Secretary.*

[F. R. Doc. 52-11223; Filed, Oct. 15, 1952; 8:49 a. m.]